

SEALED QUOTATION DOCUMENT

Procurement of Goods Sealed Quotation

Supply, Delivery and Installation of CCTV Surveillance System on East-West Highway

**Issued by:
Khairahani Municipality Office, Chitwan
Khairahani Khairhahi Chitwan**

Sealed Quotation Number 15/MF/CHT-Kmun/SQ/Goods/2080-2081

Issued On 10-04-2024

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Abbreviations

BDS	Bid Data Sheet
BD	Bidding Document
DCS	Delivery and Completion Schedule
DP	Development Partner
EQC	Evaluation and Qualification Criteria
GCC	General Conditions of Contract
GoN	Government of Nepal
GMP	Good Medicines Practice
ICC	International Chamber of Commerce
IFB	Invitation for Bids
ITB	Instructions to Bidders
IGRS	List of Goods and Related Services
NCB	National Competitive Bidding
PAN	Permanent Account Number
PPMO	Public Procurement Monitoring Office
SBD	Standard Bidding Document
SBQ	Schedule of Bidder Qualifications
SCC	Special Conditions of Contract
SR	Schedule of Requirements
TS	Technical Specifications
VAT	Value Added Tax
WHO	World Health Organization

Section - I
Invitation for Sealed Quotation

Invitation for Sealed Quotation

Name of the Office: Khairahani Municipality Office, Chitwan

Address of the Office: Khairahani Khairhani Chitwan

Invitation for Sealed Quotation for the procurement of Supply, Delivery and Installation of CCTV Surveillance System on East-West Highway

Sealed Quotation No: 15/MF/CHT-Kmun/SQ/Goods/2080-2081

Date of Publication : 10-04-2024

1. The Khairahani Municipality Office, Chitwan invites sealed quotations from registered Suppliers for the Supply, Delivery and Installation of CCTV Surveillance System on East-West Highway .
2. Eligible Suppliers may obtain further information and inspect the Sealed quotation Forms at the office of Khairahani Khairhani Chitwan , 056582885, , ito.khairhanimun@gmail.com.
OR
[may visit PPMO website www.bolpatra.gov.np.]
3. If hard copy is allowed then a complete set of Bidding Documents may be purchased from the office Khairahani Municipality Office, Chitwan Khairahani Khairhani Chitwan and the office Khairahani Municipality Office, Chitwan Khairahani Khairhani Chitwan by eligible Bidders on the submission of a written application, along with the copy of company/firm registration certificate, and upon payment of a non-refundable fee of NRs.1000.0 till 25-04-2024 12:00 during office hours.
4. Bidder who chooses to submit their bid electronically may download the bidding documents for e-submission from PPMO's e-GP i.e www.bopatra.gov.np/egp. Bidders, submitting their bid electronically, should deposit the cost of bidding document in the following account
 - i. Name of the Bank :Agricultural Development Bank Ltd.
 - ii. Name of Office :Khairahani Municipality Office, Chitwan
 - iii. Office Code no :
 - iv. Office Account No :0509101151064094
 - v. Rajaswa (revenue) Shirshak No :
5. Sealed bids must be submitted to the office Khairahani Municipality Office, Chitwan Khairahani Khairhani Chitwan by hand or through e-GP system i.e www.bopatra.gov.np/egp on or before 25-04-2024 12:00. Bids received after this deadline will be rejected.
6. The bids will be opened in the presence of Bidders' representatives who choose to attend at 25-04-2024 14:00 at the office of Khairahani Municipality Office, Chitwan
Khairahani
Khairhani, Chitwan
Bagmati Province
Nepal.
Bids must be valid for a period of 45 days after bid opening and must be accompanied by a bid security amounting to a minimum of 53000 , which shall be valid for 30 days beyond the validity period of the bid (i.e. [Refer Clause ITB 20.1]). If bidder wishes to submit the Cash Security, the cash should be deposited in Deposit Account No.[0509101151064043] at [Agricultural Development Bank Ltd. , Khairahani Municipality - 8, Parsa, Chitwan, Nepal] and submit the receipt of the deposited amount of cash along with the Sealed Quotation.
7. If the last date of purchasing and /or submission falls on a government holiday, then the next working day shall be considered as the last date. In such case the validity period of the bid security shall remain the same as specified for the original last date of bid submission
8. The Purchaser reserves the right to accept or reject, wholly or partly any or all the Sealed Quotations without assigning any reason, whatsoever.

Section - II

Instructions to Bidders

Notes on the Instructions to Bidders

This section of the bidding documents should provide the information necessary for Interested Suppliers to prepare responsive bids, in accordance with the requirements of the Purchaser. It should also give information on bid submission, opening and evaluation, and award of Contract. These Instructions to Bidders shall not be part of the Contract and shall cease to have effect once the Contract is signed.

Section II Instructions to Bidder

1. Scope of Works

1.1 The Purchaser stated in the BDS for the procurement of Goods as detailed in attached specifications, drawings and the bill of quantities provided herein. The name of Purchaser, name of project and contract identification number of Contracts are provided in the BDS.
2. Eligible Bidder

2.1 This Invitation for Bids is open to all registered Suppliers with eligibility criteria specified below.

Sl. No.	Criteria Title
1	Up to date Firm/Company Registration Certificate
2	VAT and PAN Registration Certificates
3	Updated Tax Clearance Certificate
4	one year Warranty Letter
5	Authorization Later
6	Highway Arial Fiber Related Work Experience

2.2 A bidder declared blacklisted and ineligible by the GoN, Public Procurement Monitoring Office (PPMO) and/or the DP in case of DP funded project, shall be ineligible to bid for a contract during the period of time determined by the GoN, PPMO and/or the DP.
3. One Quotation per Bidder

3.1 Each Bidder shall submit only one quotation, A Bidder who submits more than one quotation shall cause all the quotations with the Bidder's participation to be disqualified.
4. Cost of Bidding

4.1 The Bidder shall bear all costs associated with the preparation and submission of his Quotation and the Purchaser shall in no case be liable for those costs.
5. Site Visit

5.1 The Bidder at his own cost, responsibility and risk may visit the site of the supply, delivery or installation of Goods and acquire all necessary information for preparing the bid and entering into a contract for the procurement of Goods.
6. Content of Quotation Form

6.1 The Quotation Form comprise the documents listed below:

 1. Section I: Invitation for Sealed Quotation (SQ)
 2. Section II: Instructions to Bidders
 3. Section III: Bid Data Sheet
 4. Section IV Quotation Forms and Price Schedule
 5. Section V: Schedule of Requirements
 6. Section VI: General Conditions of Contract (GCC)
 7. Section VII: Special Conditions of Contract
 8. Section VIII: Contract Form
7. Clarification

7.1 A prospective Supplier/Bidder may obtain clarification on the Quotation Form from the the Purchaser on or before 5 days prior to the deadline for submission of Quotation.
8. Language of Quotation

8.1 All documents relating to the Quotation shall be in English or in Nepali.
9. Documents Comprising Quotation

9.1 The Quotation by the Bidder shall comprise the following:

 - a. Quotation Form and Price Schedules
 - b. Bid Security
 - c. Schedule of Requirements
10. Quotation Prices

10.1 The Bidder shall indicate on the appropriate Price Schedule the unit prices (where applicable) and total price in Nepali Rupees. for all items of the goods to be supplied under the contract.

10.2 All duties, taxes and other levies payable by the Bidder under the contract shall be included in the rates, prices and total Bid Price submitted by the Bidder.

10.3 Price quoted by the Bidder shall remain fixed and valid until completion of the Contract Performance and will not be subject to variation in any account.
11. Quotation Validity

11.1 The Sealed Quotation shall remain valid for the period of 45 days after opening of the quotation. A bid valid for a shorter period shall be rejected by the Purchaser as nonresponsive.

12. Quotation/Bid Security	12.1 The Bidder shall furnish as part of its Sealed Quotation, in original form, a bid security as specified in the BDS. In case of e-submission of Quotation, the Bidder shall upload scanned copy of Bid security letter at the time of electronic submission of the Sealed Quotation. The Bidder accepts that the scanned copy of the Bid security shall, for all purposes, be equal to the original. The details of original Bid Security and the scanned copy submitted with e-Sealed Quotation should be the same otherwise the Sealed Quotation shall be non-responsive. 12.2 The Bid Security shall be, at the Bidder's option, in any of the following forms: (a) an unconditional bank guarantee from Commercial Bank or Financial Institution eligible to issue Bank Guarantee as per prevailing Law or; (b) a cash deposit voucher in the Purchaser's Account as specified in the BDS In the case of a bank guarantee, the Bid Security shall be submitted either using the Bid Security Form included in Section III (Bidding Forms) or in another Form acceptable to the Purchaser. The form must include the complete name of the Bidder. The Bid security shall be valid for minimum thirty (30) days beyond the original validity period of the bid 12.3 Any Sealed Quotation not accompanied by an enforceable and substantially compliant bid security, shall be rejected by the Purchaser as nonresponsive. In case of e-Submission, if the scanned copy of an acceptable Bid Security letter is not uploaded with the electronic Bid then Bid shall be rejected. 12.4 The Bid security shall be forfeited if: (a) a Bidder requests for withdrawal or modification during the period of Quotation validity specified by the Bidder on the Letter of Bid, after Sealed Quotation submission deadline. (b) a Bidder changes the prices or substance of the Sealed Quotation while providing information; (c) a Bidder involves in fraud and corruption pursuant to clause 26; (d) the successful Bidder fails to: (i) furnish a performance security in accordance with clause 25; (ii) sign the Contract in accordance within the period stipulated in Letter of Award.; or (iii) accept the correction of arithmetical errors pursuant to clause 19.1 (iv) fails to provide the clarification of its Quotation by the date and time set in the Purchaser's
13. Format and Signing of Quotations	13.1 The Quotation shall be typed or written in indelible ink and shall be signed by an authorized person. Any entries or amendments including alternations, additions or corrections made shall be initialled by the same authorized person.
14. Sealing and Marking of Quotations	14.1 Bidders may submit their bids by manually or by electronically. When so specified in the BDS. Procedures for submission, sealing and marking are as follows: Bidders submitting bids by manually. The Bidder shall submit his bid in sealed envelopes. The envelope shall be addressed to the Purchaser as specified in the BDS and shall bear the name and identification number of the Sealed quotation. 14.2 Bidders submitting Bids electronically shall follow the electronic bid submission procedure specified in the BDS
15. Deadline for Submission of Quotations	15.1 Quotations shall be delivered to the Purchaser at the address no later than the time and date specified in the BDS.
16. Late Quotation	16.1 Any Quotation received by the Purchaser after the deadline shall not be accepted and shall be returned unopened to the Bidder upon request.
17. Modification And Withdrawal	17.1 Sealed Quotations once submitted shall not be withdrawn or modified.
18. Bid Opening	18.1 The Purchaser shall open the Quotations in the presence of the Bidders' representatives who choose to attend at the time and in the place as specified in the BDS 18.2 The Purchaser shall prepare and provide minutes of the opening including the information disclosed to those present.
19. Process to be Confidential	19.1 Information relating to the examination, evaluation and comparison of Quotations and recommendations for the award of a contract shall not be disclosed to Bidders or any other persons not officially concerned with such process until the award to the successful Bidder has been announced. Any efforts by the Bidder to influence the Purchaser in the Quotation evaluation, comparison or contract award decisions may result in rejection of Bidder's quotation.
20. Examination of Quotations	20.1 Prior to the detailed evaluation of Quotations, the Purchaser shall determine whether each Quotation (a) meets the eligibility criteria defined in Clause 2; (b) has been properly signed by the authorized person; (c) is accompanied by the required securities; and (d) is substantially responsive to the requirements of the Bidding documents.

21. Evaluation and Comparison of Quotations	21.1 In evaluating the Quotations, the Purchaser shall determine for each Sealed Quotation the evaluated Quotation Price by adjusting any corrections for errors. Quotations shall be checked by the Purchaser for any arithmetic errors. Errors shall be corrected by the Purchaser as follows: (a) only for unit price Contracts, if there is a discrepancy between the unit price and the total price that is obtained by multiplying the unit price and quantity, the unit price shall prevail and the total price shall be corrected, unless in the opinion of the Purchaser there is an obvious misplacement of the decimal point in the unit price, in which case the total price as quoted shall govern and the unit price shall be corrected; (b) if there is an error in a total corresponding to the addition or subtraction of subtotals, the subtotals shall prevail and the total shall be corrected; and (c) If there is a discrepancy between the Quotation price in the Summary of Price Schedule and the Quotation amount in item (c) of the Letter of Quotation, the price in the Summary of Price Schedule will prevail and the Quotation amount in item (c) of the Letter of Quotation will be corrected. (d) if there is a discrepancy between words and figures, the amount in words shall prevail, unless the amount expressed in words is related to an arithmetic error, in which case the amount in figures shall prevail subject to (a) , (b) and (c) above. 21.2 In case of e-submission of bid, upon notification from the Purchaser, the bidder shall also submit the original of documents comprising the Sealed Quotation as per ITB 9 for verification of submitted documents for acceptance of the e-submitted bid. If a Bidder does not provide original of document of its Sealed Quotation by the date and time set in the Purchaser's request for clarification, its bid may be rejected. 21.3 If the Bidder that submitted the lowest evaluated bid does not accept the correction of errors, its bid shall be disqualified and its Quotation security shall be forfeited. 21.4 In Case, a corruption case is being filed to Court against the Natural Person or Board of Director of the firm/institution /company or any partner of JV, such Natural Person or Board of Director of the firm/institution /company or any partner of JV such bidder's bid shall be excluded from the evaluation, if public entity receives instruction from Government of Nepal.
22. Award of Contract	22.1 The Purchaser shall decide the award of the contract to the Bidder whose Quotation is within the approved estimate and who has offered the lowest evaluated Price within Quotation validity period provided that such Bidder has been determined to be eligible in accordance with the provisions of Clauses 2. 22.2 In Case, a corruption case is being filed to Court against the Natural Person or Board of Director of the firm/institution /company or any partner of JV, such Natural Person or Board of Director of the firm/institution /company or any partner of JV such bidder's bid shall be excluded from the evaluation, if public entity receives instruction from Government of Nepal.
23. Purchaser's Right to Accept or Reject	23.1 The Purchaser reserves the right to accept or reject any Quotation or to cancel the bidding process and reject all Quotations, at any time prior to the award of the contract, without assigning any reasons whatsoever and without thereby incurring any liability to the affected Bidder or Bidders.
24. Notification of Award and Signing of Agreement	24.1 The Bidder whose bid is accepted and all other participating bidders shall be notified of the award by the Purchaser. 24.2 The notification (hereafter called the "Letter of Acceptance") to the successful Bidder shall state the sum that the Purchaser shall pay the Bidder in the execution and completion of the contract. Within 7 days of receipt of the Letter of Acceptance, the successful Bidder shall deliver the Performance Security pursuant Clause 25 and sign the Agreement. 24.3 Inability of the Bidder to make an Agreement within the above stated period shall result in the forfeiture of the Bidder's Quotation Security and , upon which the Contract shall then be awarded to the next successive successful Bidder.
25. Performance Security	25.1 Within seven (7) days of the receipt of Letter of Acceptance from the Purchaser, the successful Bidder shall furnish the performance security as stated below from Commercial Bank or Financial Institution eligible to issue Bank Guarantee as per prevailing Law in accordance with the conditions of Contract using Sample Form for the Performance Security included in Section VIII (Contract Forms), or another form acceptable to the Purchaser. i) If bid price of the bidder selected for acceptance is up to 15 (fifteen) percent below the approved cost estimate, the performance security amount shall be 5 (five) percent of the bid price. ii) For the bid price of the bidder selected for acceptance is more than 15 (fifteen) percent below of the cost estimate, the performance security amount shall be determined as follows: Performance Security Amount = $[(0.85 \times \text{Cost Estimate} - \text{Bid Price}) \times 0.5] + 5\% \text{ of Bid Price.}$ The Bid Price and Cost Estimate shall be inclusive of Value Added Tax.

26. Corrupt or Fraudulent Practices
- 26.1 The Purchaser shall reject a bid for award if it determines that the Bidder recommended for award of contract has engaged in corrupt or fraudulent practices in competing for the contract in question.
- 26.2 In Case, a corruption case is being filed to Court against the Natural Person or Board of Director of the firm/institution /company or any partner of JV, such Natural Person or Board of Director of the firm/institution /company or any partner of JV such bidder's bid shall be excluded from the evaluation, if public entity receives instruction from Government of Nepal.
27. Conduct of Bidders
- 27.1 The Bidder shall be responsible to fulfil his obligations as per the requirement of the Contract Agreement, Bidding documents, GoN's Procurement Act and Regulations.
- 27.2 The Bidder shall not carry out or cause to carry out the following acts with an intention to influence the implementation of the procurement process or the procurement agreement :
- give or propose improper inducement directly or indirectly,
 - distortion or misrepresentation of facts
 - engaging or being involved in corrupt or fraudulent practice
 - interference in participation of other prospective bidders.
 - coercion or threatening directly or indirectly to cause harm to the person or the property of any person to be involved in the procurement proceedings,
 - collusive practice among bidders before or after submission of bids for distribution of works among bidders or fixing artificial/uncompetitive bid price with an intention to deprive the Purchaser the benefit of open competitive bid price..
- 27.3 contacting the Purchaser with an intention to influence the Purchaser with regards to the bid or interference of any kind in examination and evaluation of the bids during the period after opening of bids up to the notification of award of contract
28. Blacklisting Bidder
- 28.1 Without prejudice to any other right of the Purchaser under this Contract, GoN, Public Procurement Monitoring Office may blacklist a bidder for his conduct up to three years on the following grounds and seriousness of the act committed by the bidder:
- if it is proved that the bidder committed acts pursuant to the Sub-Clause 27.2,
 - if it is proved later that the bidder/Supplier had committed substantial defect in implementation of the contract or had not substantially fulfilled his obligations under the contract or the completed work is not of the specified quality as per the contract ,
 - if convicted by a court of law in a criminal offence which disqualifies the bidder from participating in the contract.
 - if it is proved that the contract agreement signed by the bidder was based on false or misrepresentation of bidder's qualification information,
 - Inability of the bidder signing the contract agreement, once the letter of acceptance to the successful bidder has been provided by the Purchaser.,
- 28.2 A firm declared blacklisted and ineligible by the GON shall be ineligible to bid for a contract during the period of time determined by the PPMO.
29. Publication of contract award notice
- 29.1 Within three days of contract signing, the Public Entity shall publish a notice on the contract award with following information: in its notice board as well as shall manage to publish the notice on the notice board of District Coordination Committee, District Administration Office, Provincial Treasury and Controller Office and District Treasury and Controller Office, Such notice shall also be posted in its website and PPMO's website.
- Name of the procurement,
 - IFB number,
 - date and name of newspaper published the IFB notice,
 - name of the successful Bidder, and the contract price.
- 29.2 The Purchaser shall promptly respond in writing to any unsuccessful Bidder who, within thirty days from the date of publication of contract award notice in accordance with ITB 29.1, requests in writing the grounds on which its bid was not selected.
30. Provision of PPA and PPR
- 30.1 If any provision of this document are inconsistent with Public Procurement Act (PPA), 2063 or Public Procurement Regulations (PPR), 2064, the provision of this documents shall be void to the extent of such inconsistency and the provision of PPA and PPR shall prevail.

Section III Bid Data Sheet	
ITB 1	The scope of Supply is : The number of the Invitation for Sealed Quotation (SQ) is :15/MF/CHT-Kmun/SQ/Goods/2080-2081The Purchaser is: Khairahani Municipality Office, Chitwan The Name of the Project is :Supply, Delivery and Installation of CCTV Surveillance System on East-West Highway
ITB 10	The Bidder shall furnish a bid security, from Commercial Bank or Financial Institution eligible to issue Bank Guarantee as per prevailing Law with a minimum of NRs.53000, which shall be valid for 30 days beyond the validity period of the bid.
ITB 10(a)	Cash Deposit Account for Bid Security: Bank Name:Agricultural Development Bank Ltd. Bank Address:Khairahani Municipality - 8, Parsa, Chitwan, Nepal Account holder's Name:Ga 3.1 Local Level Deposit Account Account Number:0509101151064043
ITB 14.1	Bidders shall have the option of submitting their bids electronically. Bidders shall follow the electronic bid submission procedures specified below: - The bidder is required to register in the e-GP system https://www.bolpatra.gov.np/egp following the procedure specified in e-GP guideline. - Interested bidders may either purchase the bidding document from the Purchaser's office as specified in the BDS or may download the from e-GP system. - The registered bidders need to maintain their profile data required during preparation of bids. - In order to submit their bids electronically the cost of the bidding document shall be deposited in the account specified in IFQ. In addition, electronic scanned copy (.pdf format) of the bank deposit voucher/cash receipt should also be submitted along with the bid. - The bidder can prepare the their bids using data and documents maintained in bidder's profile and forms/format provided in Sealed Quotation Document by Purchaser. The bidder may submit bids as a single entity or as a joint venture. The bidder submitting bid in joint venture shall have to upload joint venture agreement along with partner(s) Bolpatra ID provided during bidder's registration. - Bidders (all partners in case of JV) should update their profile data and documents required during preparation and submission of their bids. - In case of bid submission in JV, the consent of the partners shall be obtained through the confirmation link sent to the registered email address and the partners shall have to acknowledge their confirmation.The required forms and documents shall be part of technical bids: - Letter of Quotation (Mandatory) - Quotation Security /Bank Guarantee (Mandatory) - Company registration (Mandatory) - VAT registration (Mandatory) - Tax clearances certificate or evidence of tax return submission for the F/Y (Mandatory) - Power of Attorney of Bid signatory (Mandatory) - Completed Price Schedule (Mandatory) - Bank Voucher for cost of bid document (Mandatory) - Joint venture agreement (Mandatory in case of JV Bid) - Additional documents specified in Bidding Document (any other required documents, which is not against the provision of Procurement Act/Regulation/Directives and Standard Bidding Document issued by PPMO) Note: The documents specified as "Mandatory" should be included in e-submission. - After providing all the details and documents, bid response documents will be generated from the system. Bidders are advised to download and verify the response documents prior to bid submission. - For verifying the authentic user, the system will send one time password in the registered email address of the bidder. System will validate the OTP and allow bidder to submit their bid. - Once Quotation is submitted, bidders won't able to modify/withdrawal their bid. - The Bidder/Quotation shall meet the following requirements and conditions for e-submission of bids: - The e-submitted Quotations must be readable through PDF reader.The facility for submission of Quotation electronically through e-submission is to promote transparency, non-discrimination, equality of access, and open competition in the bidding process. The Bidders are fully responsible to use the e- submission facility properly in e-GP system as per specified procedures and in no case the Purchaser shall be held liable for Bidder's inability to use this facility.b) When a bidder submits electronic bid through the PPMO e-GP portal, it is assumed that the bidder has prepared the bid by studying and examining the complete set of the Bidding documents including specifications, drawings and conditions of contract.
ITB 15	The deadline for Sealed Quotation submission is:25-04-2024 12:00 Address:Khairahani Khairhani Chitwan

ITB 18	The Sealed Quotation opening shall take place at : Address :Khairahani Municipality Office, Chitwan Khairahani Khairhani, Chitwan Bagmati Province Nepal Date and Time:25-04-2024 14:00 a) e-GP system allows to download the Sealed Quotation response document only after bid opening date and time are met. Simultaneous login of two members of the opening committee is required for bid opening. b)The Purchaser shall conduct the opening of bid at the address on the same date and time as specified in bidding document in the presence of Bidders’ representatives who choose to attend
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Section - IV

Sample Forms

1. Quotation and Price Schedules

Date:

To: *[name and address of the Purchaser]*

Gentlemen and/or Ladies:

Having examined the Sealed Quotation (SQ) documents, we the undersigned, offer to supply and deliver ***[description of goods and services]*** in conformity with the said SQ documents for the sum of ***[total SQ amount in words and figures]*** or such other sums as may be ascertained in accordance with the Schedule of Prices attached herewith and made part of this SQ.

We undertake, if our SQ is accepted, to deliver the goods in accordance with the delivery schedule specified in the Schedule of Requirements.

If our SQ is accepted, we will obtain the guarantee of a bank in a sum equivalent to Five (5) percent of the Contract Price for the due performance of the Contract, in the form prescribed by the Purchaser.

We agree to abide by this SQ for a Period of **45** days from the date fixed for SQ opening it shall remain binding upon us and may be accepted at any time before the expiration of that period.

Until a formal Contract is prepared and executed, this SQ, together with your written acceptance thereof and your notification of award, shall constitute a binding Contract between us.

We understand that you are not bound to accept the lowest or any SQ you may receive.

Dated this _____ day of _____ 20_____.

[signature]

[in the capacity of]

Duly authorized to sign SQ for and on behalf of _____

2. Bidder's Information Form

[The Bidder shall fill in this Form. No alterations to its format shall be permitted and no substitutions shall be accepted. In case of joint venture, each partner shall fill the information in separate form.]

1.	Bidder's Legal Name	
2	Bidder's Address:	
3	Bidder's Country of Registration:	
4	Bidder's Year of Registration:	
5	Bidder's Legal Address in Country of Registration	
6.	Bidder's Authorized Representative Information: Name: Address: Telephone/Fax numbers: Email Address:	
7	Bidder's Telephone/Fax numbers:	
8	Bidder's Email Address:	
	Attached are copies of the following original documents. ☐ 1. Firm Registration Certificate ☐ 2. Authorization to represent the firm	

3. Price Schedule for Goods

Name of Bidder _____ Contract Identification Number _____

Item	Description	Country of Origin	Quantity	Unit Price ¹ EXW (in NRs)		Total Price (in NRs) (cols. 4x5)
				In Figure	In Words	
1	2	3	4	5		4x5=6
Total						
VAT						
Grand Total						

Note: Unit price shall include all custom duties and taxes, transportation cost to the final destination and insurance cost.

[If there are more than one lot/slice/package, prepare Price Schedule form for each lot/slice/package]

Name _____

In the capacity of _____

Signed _____

Duly authorized to sign the Sealed Quotation for and on behalf of _____

Date: _____

¹ The price shall include all customs duties and sales and other taxes already paid or payable on the components and raw material used in the manufacture or assembly of the item or the customs duties and sales and other taxes paid on the previously imported item offered ex warehouse, ex showroom, or off-the-shelf. These factors should not be entered separately.

4. Bid Security

Bank's Name, and Address of Issuing Branch or Office

(On Letter head of the Commercial Bank or Financial Institution eligible to issue Bank Guarantee as per prevailing Law)

Beneficiary: name and address of Employer.....

Date:.....

Bid Security No.:

We have been informed that [*insert name of the Bidder*] (hereinafter called "the Bidder") intends to submit its bid (hereinafter called "the Bid") to you for the execution of name of Contract under Invitation for Bids No. ("the IFB").

Furthermore, we understand that, according to your conditions, bids must be supported by a bid guarantee.

At the request of the Bidder, we..... name of Bank.hereby irrevocably undertake to pay you any sum or sums not exceeding in total an amount of.amount in figures (. amount in words) upon receipt by us of your first demand in writing accompanied by a written statement stating that the Bidder is in breach of its obligation(s) under the bid conditions, because the Bidder:

- (a) has withdrawn or modifies its Bid during the period of bid validity specified by the Bidder in the Form of Bid; or
- (b) does not accept the correction of errors in accordance with the Instructions to Bidders (hereinafter "the ITB"); or
- (c) having been notified of the acceptance of its Bid by the Employer during the period of bid validity, (i) fails or refuses to execute the Contract Agreement, or (ii) fails or refuses to furnish the performance security, in accordance with the ITB.
- (d) is involved in fraud and corruption in accordance with the ITB

This guarantee will remain in force up to and including the datenumber.....days after the deadline for submission of Bids as such deadline is stated in the instructions to Bidders or as it may be extended by the Employer, notice of which extension(s) to the Bank is hereby waived. Any demand in respect of this guarantee should reach the Bank not later than the above date.

This Bank guarantee shall not be withdrawn or released merely upon return of the original guarantee by the Bidder unless notified by you for the release of the guarantee.

This guarantee is subject to the Uniform Rules for Demand Guarantees, ICC Publication No. 758.

Bank's seal and authorized signature(s) . . .

Note:

The bid security of has been counter guaranteed by the Bankon

..... (Applicable for Bid Security of Foreign Banks).

Schedule of Requirement

1. List of Goods and Related Services

1 Electrical machinery apparatus equipment and consumables			
Procument Item Details			
SL. No	Item Description	Unit of Measurement	Quantity
1	8 MP Motorized Camera	Set	4.0
2	8 MP Fixed Camera	set	20.0
3	Network Video Recorder (NVR) - 32	set	1.0
4	6TB HDD	set	4.0
5	24 Port Switch	set	1.0
6	Pole Bracket	set	24.0
7	Pole Box	set	12.0
8	6 Core Messenger Fiber	mt	6000.0
9	6 Core Messenger Fiber laying cost	mt	6000.0
10	Fiber Media Converter (dual port)	set	12.0
11	cat 6 cable	mt	300.0
12	Consoling 6mm Power Cable	mt	300.0
13	9 Meter Galvanized Pole For Existing ANPR	set	2.0
14	pole arm 2.4 meter	set	10.0
15	pole arm 5 meter	set	2.0
16	Installation	job	1.0

2. Delivery and Completion Schedule

1 Electrical machinery apparatus equipment and consumables					
SL. No	Description of Goods	Final Destination	Earliest Delivery Date	Acceptable Delivery Date	Bidder's offered Delivery date
1	8 MP Motorized Camera	Khairahani Municipality	Within One Month	Within One Month	
2	8 MP Fixed Camera	Khairahani Municipality	Within One Month	Within One Month	
3	Network Video Recorder (NVR) - 32	Khairahani Municipality	Within One Month	Within One Month	
4	6TB HDD	Khairahani Municipality	Within One Month	Within One Month	
5	24 Port Switch	Khairahani Municipality	Within One Month	Within One Month	
6	Pole Bracket	Khairahani Municipality	Within One Month	Within One Month	
7	Pole Box	Khairahani Municipality	Within One Month	Within One Month	
8	6 Core Messenger Fiber	Khairahani Municipality	Within One Month	Within One Month	
9	6 Core Messenger Fiber laying cost	Khairahani Municipality	Within One Month	Within One Month	
10	Fiber Media Converter (dual port)	Khairahani Municipality	Within One Month	Within One Month	
11	cat 6 cable	Khairahani Municipality	Within One Month	Within One Month	
12	Consoling 6mm Power Cable	Khairahani Municipality	Within One Month	Within One Month	
13	9 Meter Galvanized Pole For Existing ANPR	Khairahani Municipality	Within One Month	Within One Month	
14	pole arm 2.4 meter	Khairahani Municipality	Within One Month	Within One Month	
15	pole arm 5 meter	Khairahani Municipality	Within One Month	Within One Month	
16	Installation	Khairahani Municipality	Within One Month	Within One Month	

Technical Specifications

1 Electrical machinery apparatus equipment and consumables				
Sl. No.	Description of Goods	Particulars	Requirements	Bidder's Offer
1	8 MP Motorized Camera	8 MP Motorized Camera	4	
2	8 MP Fixed Camera	8 MP Fixed Camera	20	
3	Network Video Recorder (NVR) - 32	Network Video Recorder (NVR) - 32	1	
4	6TB HDD	6TB HDD	4	
5	24 Port Switch	24 Port Switch	1	
6	Pole Bracket	Pole Bracket	24	
7	Pole Box	Pole Box	12	
8	6 Core Messenger Fiber	6 Core Messenger Fiber	6000	
9	6 Core Messenger Fiber laying cost	6 Core Messenger Fiber laying cost	6000	
10	Fiber Media Converter (dual port)	Fiber Media Converter (dual port)	12	
11	cat 6 cable	cat 6 cable	300	
12	Consoling 6mm Power Cable	Consoling 6mm Power Cable	300	
13	9 Meter Galvanized Pole For Existing ANPR	9 Meter Galvanized Pole For Existing ANPR	2	
14	pole arm 2.4 meter	pole arm 2.4 meter	10	
15	pole arm 5 meter	pole arm 5 meter	2	
16	Installation	Installation	1	

Conditions of Contract

Section VI. General Conditions of Contract

1. Definitions	1.1 In this contract, the following terms shall be interpreted as indicated: a. "The Contract" means the agreement entered into between the Purchaser and the Supplier, as recorded in the Contract Form Signed by the parties, including all attachments and appendices thereto and all documents incorporated by reference therein; b. "The Contract Price" means the price payable to the Supplier under the contract for the full and proper performance of its contractual obligation; c. "The Goods" means Equipment and related Accessories and spare-parts or any other materials which the Supplier is required to supply to the Purchaser under the contract; d. "Services" means services ancillary to the supply of the goods such as transportation and insurance including the installation, commissioning and the operational and maintenance training of the supplied equipment. e. "The Purchaser" means the procuring entity purchasing the goods; f. "The Supplier" means the organization supplying the goods and services under this contract.
2. Technical Specification	2.1 The goods supplied under this contract shall confirm to the standards mentioned in the Technical Specification.
3. Patent Right	3.1 The Supplier shall indemnify the Purchaser against all third-party claims of infringement of patent, trademark or industrial design rights arising from use of goods or any part thereof in the Purchaser's country.

4. Performance Security	4.1 Within seven days (7) of receipt of award of contract from the Purchaser, the successful Bidder shall furnish the performance security in the Performance Security Form provided in the Bidding Documents for the due performance of the Contract in the amounts specified in the SCC. 4.2 Failure of the successful Supplier to comply with the requirement of Sub - clause 4.1 shall constitute sufficient grounds for the annulment of the award and forfeiture of the bid security, in which event the Purchaser may make the award to the next lowest Supplier or call for new sealed quotations. 4.3 The proceeds of the Performance Security shall be payable to the Purchaser as compensation for any loss resulting from the Supplier's failure to complete its obligations under the Contract. 4.4 The validity of Performance Security shall be the sum of delivery period, warranty period from the date of the issue of final acceptance certificate to the Supplier and additional one month. 4.5 The performance security shall be released within 28 days of completion of warranty period and upon submission of claim by the Supplier.
5. Inspection and Tests	5.1 The Purchaser or its Representative shall have the right to inspect and/or test the goods to confirm their conformity to the Technical Specification and the quality of performance after the supply and delivery of good to the Purchaser's premises 5.2 The Purchaser may reject any Goods or any part thereof that fail to pass any test and/or inspection or do not conform to the specifications. The Supplier shall either rectify or replace such rejected Goods or parts thereof or make alterations necessary to meet the specifications at no cost to the Purchaser.
6. Packing	6.1 The Supplier shall provide such packing of the goods as is required to prevent their damage or deterioration during transmit to their final destination as indicated in the contract. 6.2 The packing shall be sufficient to withstand, without limitation, rough handling during transit and exposure to extreme temperatures, salt and precipitation during transit and open storage. 6.3 The packing, marking and documentation within and outside the packages shall comply strictly with such special requirements as shall be expressly provided in accordance with international standard and practice.
7. Delivery of Goods	7.1 Delivery of the goods shall be made by the Supplier in accordance with the terms specified by the Purchaser in its Schedule of Requirements.
8. Insurance	8.1 The goods supplied under the contract shall be fully insured in the currency of the Sealed Quotation price against loss or damage incidental to manufacture or acquisition, transportation, storage and delivery in the manner specified.

9. Warranty	9.1 The Supplier warrants that all the goods supplied under the contract shall fully comply with the specification laid down in the contract. 9.2 Unless otherwise specified in the SCC, the warranty shall remain valid for one year after the goods have been delivered to the final destination indicated in the contract, and accepted by the Purchaser after installation and commissioning of equipment by the Supplier. 9.3 The Purchaser shall promptly notify the Supplier in writing of any claims arising under this warranty. 9.4 Upon receipt of such notice, the Supplier shall, with all reasonable speed, replace the defective goods without cost to the Purchaser. The Supplier will be entitled to remove, at its own risk and cost, the defective goods.
10. Payment	10.1 Payment shall be made in the Nepalese currency as specified in the SCC 10.2 Payment of the goods shall be made after the delivery and installation and commissioning of goods (if applicable) to the satisfaction of the Purchaser.
11. Prices	11.1 Prices charged by the Supplier for goods delivered under the contract shall not vary from the prices quoted by the Supplier in its sealed quotation.
12. Changed Order	12.1 Where the Purchaser desires to make changes in Schedule of Requirement, it shall not exceed more than 15 percent.
13. Liquidated Damages	13.1 If the Supplier fails to deliver any or all of the goods within the time period specified in the contract, the Purchaser shall, without prejudice to its other remedies under the contract, deduct from the contract price, as liquidated damages, a sum equivalent to 0.05 percent of the contract price of delayed goods for each day of delay until actual delivery, up to a maximum deduction of 10 percent of the delayed goods' contract price. Once the maximum is reached, the Purchaser may consider termination of the contract.
14. Resolution of Disputes	14.1 If any dispute or difference of any kind whatsoever shall arise between the Purchaser and the Supplier in connection with or arising out of the Contract, the parties shall make every effort to resolve amicably such dispute or difference by mutual consultation. 14.2 If, after thirty (30) days, the parties have failed to resolve their dispute or difference by such mutual consultation, then either the Purchaser or Supplier may give notice to the other party of it's intention to commence arbitration, as hereinafter provided, as to the matter in dispute, and no arbitration in respect of this matter may be commenced unless such notice is given. 14.2.1 Any dispute or difference in respect of such a notice of intention to commence arbitration has been given in accordance with this Clause shall be finally settled by arbitration. Arbitration may be

	commenced prior to or after delivery of the Goods under the Contract. 14.2.2 Arbitration proceedings shall be conducted in accordance with in accordance with the rules of Nepal Council of Arbitration (NEPCA). 14.3 Notwithstanding any reference to arbitration herein, a. the parties shall continue to perform their respective obligations under the Contract unless they otherwise agree; and b. the Purchaser shall pay the Supplier any monies due the Supplier.
15. Governing Language	15.1 The Governing Language shall be: Nepali or English
16. Applicable Law	16.1 The applicable law shall be Laws of Nepal.
17. Notices	17.1 Any Notice given by one party to the other pursuant to the Contract shall be in writing to the address specified in the SCC. The term “in writing” means communicated in written form with proof of receipt 17.2 A Notice shall be effective when delivered or on the Notice’s effective date, whichever is later.
18. Taxes and Duties	18.1 The Supplier shall be entirely responsible for all taxes, duties, licence fees and other such levies imposed by the GON.
19. Operation, Maintenance and Spare-parts Manuals	19.1 The successful Supplier shall supply manufacturer's operation, maintenance and spare-part manuals of the goods (Equipment) as specified in SCC..
20. Conduct of Suppliers	20.1 The Supplier shall be responsible to fulfil his obligations as per the requirement of the Contract Agreement, Quotation documents, GoN’s Procurement Act and Regulations. 20.2 The Supplier shall not carry out or cause to carryout the following acts with an intention to influence the implementation of the procurement process or the procurement agreement : a. give or propose improper inducement directly or indirectly, b. distortion or misrepresentation of facts c. engaging or being involved in corrupt or fraudulent practice d. interference in participation of other prospective bidders. e. coercion or threatening directly or indirectly to impair or harm, any party or the property of the party involved in the procurement proceedings,

	f. collusive practice among bidders before or after submission of bids for distribution of works among bidders or fixing artificial/uncompetitive bid price with an intention to deprive the Purchaser the benefit of open competitive bid price.. g. contacting the Purchaser with an intention to influence the Purchaser with regards to the bid or interference of any kind in examination and evaluation of the bids during the period after opening of bids up to the notification of award of contract
21. Blacklisting Supplier	21.1 Without prejudice to any right of the Purchaser under this Contract, the GoN, Public Procurement and Monitoring Office (PPMO) may blacklist a Supplier for his conduct up to three years on the following grounds and seriousness of the act committed by the supplier: a. if it is proved that the supplier committed acts pursuant to the Sub - clause 20.2, b. if the supplier fails to sign an agreement pursuant to ITB Clause 24, c. if it is proved later that the supplier had committed substantial defect in implementation of the contract or had not substantially fulfilled his obligations under the contract or the completed work is not of the specified quality as per the contract , d. if convicted by a court of law in a criminal offence which disqualifies the supplier from participating in the contract. 21.2 A Supplier declared blacklisted and ineligible by the GON shall be ineligible to bid for a contract during the period of time determined by PPMO and credit information bureau of Nepal.

Section VII - Special Conditions of Contract (SCC)

This SCC forms part of the Agreement

[Note: with the exception of the items for which the Purchaser's requirements have been inserted, the Bidder shall complete the following information before submitting his Sealed Quotation.]

GCC 1.1.1 (e)	The Purchaser shall be: Khairahani Municipality Office, Chitwan		
GCC 4.1	The Currency of the performance Security shall be in Nepalese Rupees. The amount of the performance security shall be as follows: (i) if bid price of the bidder selected for acceptance is up to 15 (fifteen) percent below the approved cost estimate, the performance security amount shall be 5 (five) percent of the bid price. (ii) For the bid price of the bidder selected for acceptance is more than 15 (fifteen) percent below of the cost estimate, the performance security amount shall be determined as follows: (iii) Performance Security Amount = $[(0.85 \times \text{Cost Estimate} - \text{Bid Price}) \times 0.5] + 5\% \text{ of Bid Price}$. The Bid Price and Cost Estimate shall be inclusive of Value Added Tax.		
GCC 9.1	The warranty period shall be : [[45]]		
GCC 10	The terms of payment to be made to the Supplier under the contract shall be as follows: -1 Payments shall be made in Nepalese Rupees in the following manner: Sample provisions: Advance Payment: [Usually not more than twenty (20)] percent of the contract price shall be paid within thirty (30) days of signing of the contract, and upon submission of request for advance and a bank guarantee from Commercial Bank or Financial Institution eligible to issue Bank Guarantee as per prevailing Law for equivalent amount valid until the goods are delivered and accepted and in the form provided in the Bidding Document. On Delivery and acceptance: [Hundred (100) percent. of the Contract Price of the Goods and related services (installation and commissioning of goods (if applicable)) to the satisfaction of the Purchaser delivered shall be paid within thirty (30) days upon submission of Tax Invoice and claim supported by the acceptance certificate issued by the Purchaser or its authorized person/s. Advance payment shall be deducted and settled in this payment. or On Delivery [Usually eighty (80)] percent. of the Contract Price of the Goods and related services delivered shall be paid within thirty (30) days of receipt of the Goods and upon submission of Tax Invoice. On acceptance: [Usually eighty (20)] percent. of the Contract Price of the Goods and related services (installation and commissioning of goods (if applicable)) to the satisfaction of the Purchaser. delivered shall be paid within thirty (30) days upon submission of Tax Invoice and claim supported by the acceptance certificate issued by the Purchaser or its authorized person/s or On Delivery and acceptance: One Hundred (100)] percent. of the Contract Price of the Goods and related services delivered shall be paid within thirty (30) days of receipt of the Goods and related services (installation and commissioning of goods (if applicable)) to the satisfaction of the Purchaser. and upon submission of Tax Invoice and claim supported by the acceptance certificate issued by the Purchaser or its authorized person/s TDS shall be deducted as per the prevailing rules and regulations. [Delete those not appropriate] Payments shall be made in Nepalese Rupees in the following manner:.		
	SL No	Milestone Name	Payment Percentage
	1	Advance payment	0
	2	Installment & commission	100.0
GCC 17.1	For notices, the Purchaser's address shall be: Attention: Khairahani Municipality Office, Chitwan Address: Khairahani Khairhani Chitwan Designation: Telephone: 056582885 Facsimile Number: Electronic Mail Address:		

GCC 17.1	For notices, the Suppliers’s address shall be: Attention: Address: Designation: Telephone: Facsimile Number: Electronic Mail Address:
GCC 19.1	The Supplier shall supply [1]number of copies manufacturer's operation, maintenance and spare-part manuals of the goods (Equipment) in English or Nepali language as specified in SCC.

Section VIII. Contract Form

1. Letter of Acceptance

[on letterhead paper of the Purchaser]

Date.....

To: *(name and address of the Contractor)*

Subject: *Notification of Award*

This is to notify that your Sealed Quotation dated for execution of the *name of the contract and identification number, as given in the Contract Data/SCC* for the Contract price of Nepalese Rupees *[insert amount in figures and words in Nepalese Rupees]*, as corrected in accordance with the Instructions to Bidders is hereby accepted in accordance with the Instruction to Bidders.

You are hereby instructed to contract this office to sign the formal contract agreement within 7 days. As per the Conditions of Contract, you are also required to submit Performance Security, as specified in SCC, consisting of a Bank Guarantee in the format included in Section VIII (Contract Forms) of the Bidding Document.

The Purchaser shall forfeit the bid security, in case you fail to furnish the Performance Security and to sign the contract within specified period.

Authorized Signature:

Name and Title of Signatory:

2. Contract Agreement

THIS AGREEMENT made the ____ day of _____ 20____ between *[name of Purchaser]* (hereinafter called “the Purchaser”) of the one part and *[name of Supplier]* of *[city and country of Supplier]* (hereinafter called “the Supplier”) of the other part:

WHEREAS the Purchaser invited Sealed Quotation for certain goods and ancillary services, viz., *[brief description of goods and services]* and has accepted a SQ by the Supplier for the supply of those goods and services in the sum of *[contract price in words and figures]* (hereinafter called “the Contract Price”).

NOW THIS AGREEMENT WITNESSETH AS FOLLOWS:

1. In this Agreement words and expressions shall have the same meanings as are respectively assigned to them in the Conditions of Contract referred to.
2. The following documents shall be deemed to form and be read and construed as part of this Agreement, viz.:
 - a. Form of Agreement
 - b. The Purchaser’s Notification of Award
 - c. The General Conditions of Contract;
 - d. Special Conditions of Contract
 - e. Quotation Form and the Price Schedule submitted by the Supplier;
 - f. The Schedule of Requirements;
3. In consideration of the payments to be made by the Purchaser to the Supplier as hereinafter mentioned, the Supplier hereby covenants with the Purchaser to provide the goods and services and to remedy defects therein in conformity in all respects with the provisions of the Contract.
4. The Purchaser hereby covenants to pay the Supplier in consideration of the provision of the goods and services and the remedying of defects therein, the Contract Price or such other sum as may become payable under the provisions of the contract at the times and in the manner prescribed by the Contract.

IN WITNESS whereof the parties hereto have caused this Agreement to be executed in accordance with their respective laws the day and year first above written.

On behalf of the Purchaser

Name:

Designation:

Sign:

Seal:

On behalf of the Supplier

Name:

Designation:

Sign:

Seal:

3. Performance Security

Date :

To: *[name and address of the Purchaser]*

WHEREAS **[insert complete name of Supplier]** (hereinafter “the Supplier”) has received the notification of award for the execution of **[insert identification number and name of contract]** (hereinafter “the Contract”).

AND WHEREAS it has been stipulated by you in the aforementioned Contract that the Supplier shall furnish you with a security **[insert type of security]** issued by a reputable guarantor for the sum specified therein as security for compliance with the Supplier’s performance obligations in accordance with the Contract.

AND WHEREAS the undersigned **[insert complete name of Guarantor]**, legally domiciled in **[insert complete address of Guarantor]**, (hereinafter the “Guarantor”), have agreed to give the Supplier a security:

THEREFORE WE hereby affirm that we are Guarantors and responsible to you, on behalf of the Supplier, up to a total of **[insert currency and amount of guarantee in words and figures]** and we undertake to pay you, upon your first written demand declaring the Supplier to be in default under the Contract, without cavil or argument, any sum or sums within the limits of **[insert currency and amount of guarantee in words and figures]** as aforesaid, without your needing to prove or to show grounds or reasons for your demand or the sum specified therein.

This security is valid until the **[insert day, month, year]**.

Name: **[insert complete name of person signing the Security]**

In the capacity of: **[insert legal capacity of person signing the Security]**

Signed: **[insert signature of person whose name and capacity are shown above]**

Duly authorized to sign the security for and on behalf of: **[insert seal and complete name of Guarantor]**

Date: **[insert date of signing]**

4. Bank Guarantee for Advance Payment

To: *[name of the Purchaser]*

[name of Contract]

Gentlemen and/or Ladies:

In accordance with the payment provision included in the Contract, which amends Clause 10 of the General Conditions of Contract to provide for advance payment, *[name and address of Supplier]* (hereinafter called “the Supplier”) shall deposit with the Purchaser a bank guarantee to guarantee its proper and faithful performance under the said Clause of the Contract in an amount of *[amount of guarantee in figures and words]*.

We, the *[bank or financial institution]*, as instructed by the Supplier, agree unconditionally and irrevocably to guarantee as primary obligator and not as surety merely, the payment to the Purchaser on its first demand without whatsoever right of objection on our part and without its first claim to the Supplier, in the amount not exceeding *[amount of guarantee in figures and words]*.

We further agree that no change or addition to or other modification of the terms of the Contract to be performed there under or of any of the Contract documents which may be made between the Purchaser and the Supplier, shall in any way release us from any liability under this guarantee, and we hereby waive notice of any such change, addition, or modification.

The validity period of the guarantee shall be 30 days beyond the period scheduled for repayment of the advance payment and the guarantee shall remain valid and in full effect from the date of the advance payment under the Contract until the Purchaser receives full repayment of the same amount from the Supplier.

Yours truly,

Signature and seal of the Guarantors

[name of bank or financial institution]

[address]

[date]

1. Technical Specification for 8 MP Motorized Camera

SN	Minimum Technical Specification		Bidders Response (Fully/Partially Compliance)
1	Brand	 (Should be mentioned by bidder)	
2	Model	 (Should be mentioned by bidder)	
3	Image Sensor	1/2.8" CMOS or better	
4	Resolution	3840 × 2160 or higher	
5	Lens Type	Motorized	
6	Frame Rate	30 fps (3840 × 2160) or higher	
7	Stream Capability	Minimum 2 streams	
8	IR Distance	80m or better	
9	Focal Length	2.7-13.5mm Lens or better	
10	Min. Illumination	Color: ≤ 0.003 Lux or better	
11	WDR	120 dB or better	
12	Video Compression	S+265/H.265/H.264/M-JPEG	
13	Protocols	TCP/IP, ICMP, HTTP, HTTPS, DHCP, DNS, DDNS, RTP, RTSP, RTCP, PPPoE, MULTICAST, UPnP, FTP, IPV4, NTP, SMTP, IGMP, 802.1x, QoS, IPV6, ARP, UDP, SNMP, SSL, SIP, Telnet, SNTP, RTMP, SFTP, NFS	
14	System Compatibility	ONVIF (PROFILE S/T/G), SDK, Milestone, CGI, P2P	
15	Audio	Built-in	
16	On-board Storage	Micro SD card (support min. 512 GB)	
17	Image Enhancement Features	BLC/3D DNR/HLC/Corridor Format or similar	
18	Communication Interface	1 RJ45 10/100 M or better	
19	Power Supply	PoE, 12 VDC	
20	Protection	IP67 or better	

21	Document	Product datasheet, ISO Certificate, Manufacturer Authorization Certificate, Warranty Letter, and Compliance Sheet must be submitted along with the bid.	
22	Warranty and Support	Min. 1 year	

2. Technical Specification for 8 MP Fixed Camera

SN	Minimum Technical Specification		Bidders Response (Fully/Partially Compliance)
1	Brand	 (Should be mentioned by bidder)	
2	Model	 (Should be mentioned by bidder)	
3	Image Sensor	1/2.8" CMOS or better	
4	Resolution	3840 × 2160 or higher	
5	Lens Type	Fixed	
6	Frame Rate	30 fps (3840 × 2160) or higher	
7	Stream Capability	Minimum 2 streams	
8	IR Distance	50m or better	
9	Focal Length	2.8mm or better	
10	Min. Illumination	Color: ≤ 0.002 Lux or better	
11	WDR	120 dB or better	
12	Video Compression	S+265/H.265/H.264/M-JPEG	
13	Protocols	TCP/IP, ICMP, HTTP, HTTPS, DHCP, DNS, DDNS, RTP, RTSP, RTCP, PPPoE, MULTICAST, UPnP, FTP, IPV4, NTP, SMTP, IGMP, 802.1x, QoS, IPV6, ARP, UDP, SNMP, SSL, SIP, Telnet, SNTP, RTMP, SFTP, NFS	
14	System Compatibility	ONVIF (PROFILE S/T/G), SDK, Milestone, CGI, P2P	
15	Audio	Built-in	

16	On-board Storage	Micro SD card (support min. 512 GB)	
17	Image Enhancement Features	BLC/3D DNR/HLC/Corridor Format or similar	
18	Communication Interface	1 RJ45 10/100 M or better	
19	Power Supply	PoE, 12 VDC	
20	Protection	IP67 or better	
21	Document	Product datasheet, ISO Certificate, Manufacturer Authorization Certificate, Warranty Letter, and Compliance Sheet must be submitted along with the bid.	
22	Warranty and Support	Min. 1 year	

3. Technical Specification for Network Video Recorder (NVR)

SN	Minimum Technical Specification		Bidders Response (Fully/Partially Compliance)
1	Brand	 (Should be mentioned by bidder)	
2	Model	 (Should be mentioned by bidder)	
3	Interoperability	NVR Must be ONVIF protocol supported and must be supported by Third party ONVIF Camera (Brand must be full member of ONVIF to ensure compatibility with other ONVIF devices)	
4	NVR Channel	≥ 32 channel or higher	
5	SATA Port	4 SATA Slot or higher	
6	HDD Min. Capacity	10TB or higher for each HDD	
7	Max Resolution	12MP or higher	

8	HDMI/VGA Output	HDMI: 1-ch, 3840×2160, 2560×1600, 2560×1440, 1920×1080, 1280×720, 800 ×600, 1024×768, 1366×768, 1440×900, 1280×800 VGA:1-ch, 1920×1080, 1280×720, 800×600,1024×768, 1366×768, 1440×900, 1280×800	
9	Recording Resolution	12MP/ 8MP/ 6MP/ 5MP/ 4MP/ 3MP/ 1080P/ UXGA/ 720P/ VGA/ 4CIF/ DCIF/ 2CIF/ CIF/ QCIF or higher	
10	Network Interface	2×RJ45 self-adaptive 10/100/1000 Mbps network interfaces	
11	USB Interface	1×USB 2.0, 1×USB 3.0	
12	Serial Interface	1×RS485, 1×RS232	
13	Compatibility	ONVIS (Profile T/S/G; RTSP, CGI; SDK	
14	Face Detection	Attributes	
15	Face Recognition	Picture Library , Picture Comparison	
16	Others Features	Centralized management of IP cameras, including configuration, information import/export, real-time information display, two-way audio, upgrade, etc Smart search for the selected area in the video and smart playback to improve the playback efficiency	
17	Document	Product datasheet, ISO Certificate, Manufacturer Authorization Certificate, Warranty Letter, and Compliance Sheet must be submitted along with the bid.	
18	Warranty and Support	Min. 1 year	

4. Technical Specification for 6 TB HDD

SN	Minimum Technical Specification	Bidders Response (Fully/Partially Compliance)
1	Brand (Should be mentioned by bidder)	
2	Surveillance Series HDD, min. SATA 6 Gbps, and 6TB. Must be compatible with proposed NVR	

5. Technical Specification for 24 Port Switch

SN	Minimum Technical Specification	Bidders Response (Fully/Partially Compliance)
1	Brand (Should be mentioned by bidder)	
2	Model (Should be mentioned by bidder)	
3	Interfaces 24-Port gigabit SFP Layer 2 managed non-PoE switch, 8 combo RJ45 ports, 4 SFP+ uplink	
4	Forwarding rate ≥ 95.24 Mpps or better	
5	Switching capacity ≥ 128 Gbps or better	
6	MAC address table ≥ 16000 or better	
7	Ethernet switching Jumbo frame (maximum length: 9,216 bytes) IEEE 802.1Q (supporting 4K VLANs) Voice VLAN Super VLAN, Private VLAN MAC VLAN, Port based VLAN, Protocol based VLAN Subnet based VLAN GVRP Basic QinQ Flexible QinQ STP, RSTP, and MSTP ERPS (G.8032) LLDP/LLDP-MED LACP (IEEE 802.3ad)	
8	IP service ARP, DHCP client, DHCP relay, and DHCP server, DHCP snooping, DNS, DHCPv6 client and DHCPv6 relay	
9	Security Multiple AAA modes, RADIUS and TACAS+ Port-based and MAC-based 802.1x authentication, Web authentication HTTPS, SSHv1, SSHv2 Global IP-MAC binding	

		Port isolation and port security, IP source guard, SAVI, CPP and NFPP Strict and loose RPF	
10	Power Supplies	100 - 240V AC, 2A	
11	Certifications	CE, RoHS	
12	Document	Product datasheet, ISO Certificate, Manufacturer Authorization Certificate, Warranty Letter, and Compliance Sheet must be submitted along with the bid.	
13	Warranty and Support	Min. 1 year	

6. Technical Specification for Pole Bracket

SN	Minimum Technical Specification	Bidders Response (Fully/Partially Compliance)
1	Should Match camera size Requirements Powder coated	

7. Technical Specification for Pole Box

SN	Minimum Technical Specification	Bidders Response (Fully/Partially Compliance)
1	As Per the requirements Powder coated, Weather Proof and sufficient space to accommodate switch, SFF and other accessories in box	

8. Technical Specification for 6 Core Messenger Fiber

SN	Minimum Technical Specification	Bidders Response (Fully/Partially Compliance)
1	Loose Tube: PBT Loose Tube Filled in Thixotropic Jelly or similar	
2	Strength Member: Fiber Reinforced Plastic	
3	Outer sheath: High density polyethylene - Black Color -1.8mm Nominal	
4	Core Count: Typically contains 6 optical fibers.	
5	Outer Diameter: Approximately 6mm, providing a balance between physical robustness and flexibility.	
6	Strength Members: Includes Fiber Reinforced Plastic (FRP) for enhanced durability and resistance to physical stresses.	
7	Low Attenuation: Designed to minimize signal loss over long distances.	

9. Technical Specification for Fiber Media Converter (dual port)

SN	Minimum Technical Specification		Bidders Response (Fully/Partially Compliance)
1	Brand	 (Should be mentioned by bidder)	
2	Model	 (Should be mentioned by bidder)	
3	Interfaces	2* 10/100/1000Base-T RJ45 port (Data) 1*1000M uplink SC/LC fiber port (Data)	
4	Ethernet Port	10/100/1000Base-T, auto-sensing, Full/half duplex MDI/MDI-X self-adaption or better	
5	Transmission Distance	20km	
6	Twisted Pair Transmission	10BASE-T: Cat3,4,5 UTP(≤100 meter) 100BASE-TX: Cat5 or later UTP(≤100 meter) 1000BASE-T: Cat5e or later UTP(≤100 meter)	
7	Fiber Description	1.25Gbps, dual-mode single fiber SC interface. Support singlemode 9/125u	
8	Fiber Bandwidth	1.25G or higher	
9	Wavelength	1310/1550nm or better	
10	Network Bandwidth	1000MHz or better	
11	Ethernet Specifications	Bandwidth: 1.6Gbps (non-blocking) Network Latency (100 to 100M bps): the maximum delay less than 20 microseconds Packet Buffer Memory: 96KB Address Database Size: 1,000 MTBF: 100,000 hours	
12	Network Media	10base-T/100base-TX/1000Base-T/1000Base-L/ SX fiber media transmission	
13	Protocol	IEEE802.3 10BASE-T, IEEE802.3i 10Base-T IEEE802.3u 100Base-TX, IEEE802.3ab 1000Base-T IEEE802.3z 1000Base-X, IEEE802.3x	
14	Optical Cable/ Distance	dual mode: 1310nm / 0 ~ 40km, 1550nm 0 ~ 120km	

15	Fowarding Mode	Store and Forward(Full Wire Speed)	
16	Switching Capacity	2.0Gbps or higher	
17	Forwarding Rate@64byte	3.0Mpps or higher	
18	MAC	2K or higher	
19	Buffer Memory	1M or higher	
20	Jumbo Frame	1632byte or higher	
21	Lightning protection / protection level	Lightning protection: 4KV 8/20us, Protection level: IP30 or higher	
22	Safety	CCC;CE mark, commercial; CE/LVD EN60950;FCC Part 15 Class B; RoHS or higher	

10. Technical Specification for Cat6 Cable

SN	Minimum Technical Specification		Bidders Response (Fully/Partially Compliance)
1	Brand	 (Should be mentioned by bidder)	
2	Model	 (Should be mentioned by bidder)	
3	Type	UTP CAT6	
4	Conductor	Oxygen free copper (99.95% purity)	
5	Insulation	HDPE	
6	Separator	PE	
7	Sheath	PVC	
8	Cable Length	300 Mtr	
9	Accessories	Wiring Duct, RJ45 and all other accessories required for laying cable	
10	Warranty	Min. 1 years	

11. Technical Specification for Consoling 6mm Power Cable

SN	Minimum Technical Specification	Bidders Response (Fully/Partially Compliance)
1	Outdoor power cable 6mm with power coated	

12.Installation and Configuration

SN	Install and configure	Bidders Response (Fully/Partially Compliance)
1	Installation and Configuration Charge for CCTV including all needed electrical goods and accessories with fiber laying	

13.Pole arm and pole

SN	Install and configure	Bidders Response (Fully/Partially Compliance)
1	<u>Pole :-</u> 9 Meter Galvanized Pole For Existing ANPR	
2	<u>Pole Arm</u> 5 meter Pole arm	
3	<u>Pole Arm</u> 2.4 meter Pole arm	



15/MF/CHT-Kmun/SQ/Goods/2080-2081

BIDDING DOCUMENT



Supply and Delivery of Laptops, Desktop Computers and Printers

National Competitive Bidding (NCB)
15/MF/CHT-Kmun/SQ/Goods/2080-081

**KHAIRAHANI MUNICIPALITY OFFICE OF
MUNICIPAL EXECUTIVE**

Issued on:- 4-09-2024



15/MF/CHT-Kmun/SQ/Goods/2080-2081

Abbreviations

BDS.....	Bid Data Sheet
BD	Bidding Document
DCS.....	Delivery and Completion Schedule
DP	Development Partner
EQC.....	Evaluation and Qualification Criteria
GCC	General Conditions of Contract
GoN.....	Government of Nepal
GMP.....	Good Medicines Practice
ICC.....	International Chamber of Commerce
IFB	Invitation for Bids
ITB	Instructions to Bidders
LGRS	List of Goods and Related Services
NCB	National Competitive Bidding
PAN.....	Permanent Account Number
PPMO.....	Public Procurement Monitoring Office
SBD.....	Standard Bidding Document
SBQ.....	Schedule of Bidder Qualifications
SCC	Special Conditions of Contract
SR.....	Schedule of Requirements
TS.....	Technical Specifications
VAT	Value Added Tax
WHO.....	World Health Organization

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15/MF/CHT-Kmun/SQ/Goods/2080-2081

Khairahani Municipality
Office of Municipal Executive
Khairahani, Chitwan, Bagmati Province
Nepal

Invitation for Bids

First Date of Publication: 2080/12/28 (10th April 2024)

1. The Khairahani Municipality invites only electronic bids from Nepalese eligible bidders for the **Supply, Delivery and Installation of CCTV Surveillance System on East-West Highway** of following works under National Competitive Bidding procedures. The estimated amount (Including VAT and Contingencies) for the work is given in the table below.
2. Eligible Bidders may obtain further information and inspect the Bidding Documents at the office **Khairahani Municipality, Office of Municipal Executive, Chitwan, Ph No: 056-582885, website :- khairahanimun.gov.np** or may visit PPMO website www.bolpatra.gov.np.
3. Bidder should download bidding documents for e-submission from PPMO website www.bolpatra.gov.np/egp. Bidders submitting their bid electronically, should deposit the cost (NRs. 1000.00) of bidding document in the Project's Rajaswo (revenue) account as specified below and the scanned copy (pdf format) of the Bank deposit voucher shall be uploaded by the bidder at the time of electronic submission of the bids.:
Name of the Bank: **Agriculture Development Bank, Khairahani, Parsa, Chitwan.**
Name of Office: **Khairahani Municipality, Office of Municipal Executive, Chitwan.**
Office Account no.: **0509101151064094 (For Purchase Bidding Document)**
Office Account no.: **0509101151064043 (For Bid Security deposit)**
4. Electronic bids must be submitted to the **Khairahani Municipality, Office of Municipal Executive, Chitwan** through PPMO website www.bolpatra.gov.np/egp on or before **12.00 noon on 2081/01/13 (25th April 2024)**. Bids received after this deadline will be rejected.
5. The bids will be opened in the presence of Bidders' representatives who choose to attend at **2 pm on 2081/01/13 (25th April 2024)** at the office of Khairahani Municipality office of Municipal executive, Chitwan. Bids must be valid for a period of 45 days from the date of bid opening and must be accompanied by a bid security or scanned copy of the bid security in pdf format in case of e-bid, amounting to a minimum of **NRs. 53,000.00** which shall be valid for 30 days beyond the validity period of the bid.
6. If the last date of purchasing and /or submission falls on a government holiday, then the next working day shall be considered as the last date. In such case the validity period of the bid security shall remain the same as specified for the original last date of bid submission.

S.N	Contract ID	Name Of Project	Address	Estimated amount(excluding Vat And Contingencies)	Bid Security amount (Nrs)
1	015/MF/CHT-Kmun/SQ/Goods/2080-2081	Supply, Delivery and Installation of CCTV Surveillance System on East-West Highway	Khairahani Municipality	Nrs. 17,72,696.00	Nrs.53,000.00

1. Technical Specification for 8 MP Motorized Camera

SN	Minimum Technical Specification		Bidders Response (Fully/Partially Compliance)
1	Brand	 (Should be mentioned by bidder)	
2	Model	 (Should be mentioned by bidder)	
3	Image Sensor	1/2.8" CMOS or better	
4	Resolution	3840 × 2160 or higher	
5	Lens Type	Motorized	
6	Frame Rate	30 fps (3840 × 2160) or higher	
7	Stream Capability	Minimum 2 streams	
8	IR Distance	80m or better	
9	Focal Length	2.7-13.5mm Lens or better	
10	Min. Illumination	Color: ≤ 0.003 Lux or better	
11	WDR	120 dB or better	
12	Video Compression	S+265/H.265/H.264/M-JPEG	
13	Protocols	TCP/IP, ICMP, HTTP, HTTPS, DHCP, DNS, DDNS, RTP, RTSP, RTCP, PPPoE, MULTICAST, UPnP, FTP, IPV4, NTP, SMTP, IGMP, 802.1x, QoS, IPV6, ARP, UDP, SNMP, SSL, SIP, Telnet, SNTMP, RTMP, SFTP, NFS	
14	System Compatibility	ONVIF (PROFILE S/T/G), SDK, Milestone, CGI, P2P or better	
15	Audio	Built-in	
16	On-board Storage	Micro SD card (support min. 512 GB)	



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17	Image Enhancement Features	BLC/3D DNR/HLC/Corridor Format or similar	
18	Communication Interface	1 RJ45 10/100 M or better	
19	Power Supply	PoE, 12 VDC	
20	Protection	IP67 or better	
21	Document	Product datasheet, ISO Certificate, Manufacturer Authorization Certificate, Warranty Letter, and Compliance Sheet must be submitted along with the bid.	
22	Warranty and Support	Min. 1 year	

2. Technical Specification for 8 MP Fixed Camera

SN	Minimum Technical Specification		Bidders Response (Fully/Partially Compliance)
1	Brand	 (Should be mentioned by bidder)	
2	Model	 (Should be mentioned by bidder)	
3	Image Sensor	1/2.8" CMOS or better	
4	Resolution	3840 × 2160 or higher	
5	Lens Type	Fixed	
6	Frame Rate	30 fps (3840 × 2160) or higher	
7	Stream Capability	Minimum 2 streams	
8	IR Distance	50m or better	



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9	Focal Length	2.8mm or better	
10	Min. Illumination	Color: ≤ 0.002 Lux or better	
11	WDR	120 dB or better	
12	Video Compression	S+265/H.265/H.264/M-JPEG	
13	Protocols	TCP/IP, ICMP, HTTP, HTTPS, DHCP, DNS, DDNS, RTP, RTSP, RTCP, PPPoE, MULTICAST, UPnP, FTP, IPV4, NTP, SMTP, IGMP, 802.1x, QoS, IPV6, ARP, UDP, SNMP, SSL, SIP, Telnet, SNTP, RTMP, SFTP, NFS	
14	System Compatibility	ONVIF (PROFILE S/T/G), SDK, Milestone, CGI, P2P	
15	Audio	Built-in	
16	On-board Storage	Micro SD card (support min. 512 GB)	
17	Image Enhancement Features	BLC/3D DNR/HLC/Corridor Format or similar	
18	Communication Interface	1 RJ45 10/100 M or better	
19	Power Supply	PoE, 12 VDC	
20	Protection	IP67 or better	
21	Document	Product datasheet, ISO Certificate, Manufacturer Authorization Certificate, Warranty Letter, and Compliance Sheet must be submitted along with the bid.	
22	Warranty and Support	Min. 1 year	

3. Technical Specification for Network Video Recorder (NVR)- 32

SN	Minimum Technical Specification		Bidders Response (Fully/Partially Compliance)
1	Brand	 (Should be mentioned by bidder)	
2	Model	 (Should be mentioned by bidder)	
3	Interoperability	NVR Must be ONVIF protocol supported and must be supported by Third party ONVIF Camera (Brand must be full member of ONVIF to ensure compatibility with other ONVIF devices)	
4	NVR Channel	≥ 32 channel or higher	
5	SATA Port	4 SATA Slot or higher	
6	HDD Min. Capacity	10TB or higher for each HDD	
7	Max Resolution	12MP or higher	
8	HDMI/VGA Output	HDMI: 1-ch, 3840×2160, 2560×1600, 2560×1440, 1920×1080, 1280×720, 800 ×600, 1024×768, 1366×768, 1440×900, 1280×800 VGA:1-ch, 1920×1080, 1280×720, 800×600,1024×768, 1366×768, 1440×900, 1280×800	
9	Recording Resolution	12MP/ 8MP/ 6MP/ 5MP/ 4MP/ 3MP/ 1080P/ UXGA/ 720P/ VGA/ 4CIF/ DCIF/ 2CIF/ CIF/ QCIF or higher	
10	Network Interface	2×RJ45 self-adaptive 10/100/1000 Mbps network interfaces	
11	USB Interface	1×USB 2.0, 1×USB 3.0	



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12	Serial Interface	1×RS485, 1×RS232	
13	Compatibility	ONVIS (Profile T/S/G; RTSP, CGI; SDK or better	
14	Face Detection	Attributes	
15	Face Recognition	Picture Library , Picture Comparison	
16	Others Features	Centralized management of IP cameras, including configuration, information import/export, real-time information display, two-way audio, upgrade, etc Smart search for the selected area in the video and smart playback to improve the playback efficiency	
17	Document	Product datasheet, ISO Certificate, Manufacturer Authorization Certificate, Warranty Letter, and Compliance Sheet must be submitted along with the bid.	
18	Warranty and Support	Min. 1 year	

4. Technical Specification for 6 TB HDD

SN	Minimum Technical Specification	Bidders Response (Fully/Partially Compliance)
1	Brand (Should be mentioned by bidder)	
2	Surveillance Series HDD, min. SATA 6 Gbps, and 6TB. Must be compatible with proposed NVR	



5. Technical Specification for 24 Port Switch

SN	Minimum Technical Specification		Bidders Response (Fully/Partially Compliance)
1	Brand	 (Should be mentioned by bidder)	
2	Model	 (Should be mentioned by bidder)	
3	Interfaces	24-Port gigabit SFP Layer 2 managed non-PoE switch, 8 combo RJ45 ports, 4 SFP+ uplink	
4	Forwarding rate	≥95.24 Mpps or better	
5	Switching capacity	≥128 Gbps or better	
6	MAC address table	≥16000 or better	
7	Ethernet switching	Jumbo frame (maximum length: 9,216 bytes) IEEE 802.1Q (supporting 4K VLANs) Voice VLAN Super VLAN, Private VLAN MAC VLAN, Port based VLAN, Protocol based VLAN, IP-Subnet based VLAN GVRP Basic QinQ Flexible QinQ STP, RSTP, and MSTP ERPS (G.8032) LLDP/LLDP-MED LACP (IEEE 802.3ad)	
8	IP service	ARP, DHCP client, DHCP relay, and DHCP server, DHCP snooping, DNS, DHCPv6 client and DHCPv6 relay	
9	Security	Multiple AAA modes, RADIUS and TACAS+ Port-based and MAC-based 802.1x authentication, Web authentication HTTPS, SSHv1, SSHv2 Global IP-MAC binding Port isolation and port security, IP source guard, SAVI, CPP	



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		and Strict and loose RPF	NFPP	
10	Power Supplies	100 - 240V AC, 2A		
11	Certifications	CE, RoHS		
12	Document	Product datasheet, ISO Certificate, Manufacturer Authorization Certificate, Warranty Letter, and Compliance Sheet must be submitted along with the bid.		
13	Warranty and Support	Min. 1 year		

6. Technical Specification for Pole Bracket

SN	Minimum Technical Specification	Bidders Response (Fully/Partially Compliance)
1	Should Match camera size Requirements Powder coated	

7. Technical Specification for Pole Box

SN	Minimum Technical Specification	Bidders Response (Fully/Partially Compliance)
1	As Per the requirements Powder coated, Weather Proof and sufficient space to accommodate switch, SFF and other accessories in box	

8. Technical Specification for 6 Core Messenger Fiber

SN	Minimum Technical Specification	Bidders Response (Fully/Partially Compliance)
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1	Loose Tube: PBT Loose Tube Filled in Thixotropic Jelly or similar	
2	Strength Member: Fiber Reinforced Plastic	
3	Outer sheath: High density polyethylene - Black Color -1.8mm Nominal	
4	Core Count: Typically contains 6 optical fibers.	
5	Outer Diameter: Approximately 6mm, providing a balance between physical robustness and flexibility.	
6	Strength Members: Includes Fiber Reinforced Plastic (FRP) for enhanced durability and resistance to physical stresses.	
7	Low Attenuation: Designed to minimize signal loss over long distances.	

9. Technical Specification for Fiber Media Converter (dual port)

SN	Minimum Technical Specification		Bidders Response (Fully/Partially Compliance)
1	Brand	 (Should be mentioned by bidder)	
2	Model	 (Should be mentioned by bidder)	
3	Interfaces	2* 10/100/1000Base-T RJ45 port (Data) 1*1000M uplink SC/LC fiber port (Data)	
4	Ethernet Port	10/100/1000Base-T, auto-sensing, Full/half duplex MDI/MDI-X self-adaption	
5	Transmission Distance	20km	
6	Twisted Pair Transmission	10BASE-T: Cat3,4,5 UTP(≤100 meter) 100BASE-TX: Cat5 or later UTP(≤100 meter) 1000BASE-T: Cat5e or later UTP(≤100 meter)	
7	Fiber Description	1.25Gbps, dual-mode single fiber SC interface. Support singlemode 9/125u	
8	Fiber Bandwidth	1.25G or higher	



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9	Wavelength	1310/1550nm or better	
10	Network Bandwidth	1000MHz or better	
11	Ethernet Specifications	Bandwidth: 1.6Gbps (non-blocking) Network Latency (100 to 100M bps): the maximum delay less than 20 microseconds Packet Buffer Memory: 96KB Address Database Size: 1,000 MTBF: 100,000 hours	
12	Network Media	10base-T/100base-TX/1000Base-T/1000Base-L/ SX fiber media transmission	
13	Protocol	IEEE802.3 10BASE-T, IEEE802.3i 10Base-T IEEE802.3u 100Base-TX , IEEE802.3ab 1000Base-T IEEE802.3z 1000Base-X, IEEE802.3x	
14	Optical Cable/ Distance	dual mode: 1310nm / 0 ~ 40km, 1550nm 0 ~ 120km	
15	Fowarding Mode	Store and Forward(Full Wire Speed)	
16	Switching Capacity	2.0Gbps or higher	
17	Forwarding Rate@64byte	3.0Mpps or higher	
18	MAC	2K or higher	
19	Buffer Memory	1M or higher	
20	Jumbo Frame	1632byte or higher	
21	Lightning protection / protection level	Lightning protection: 4KV 8/20us, Protection level: IP30 or higher	



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22	Safety	CCC;CE mark, commercial; CE/LVD EN60950;FCC Part 15 Class B; RoHS or higher	
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10. Technical Specification for Cat6 Cable

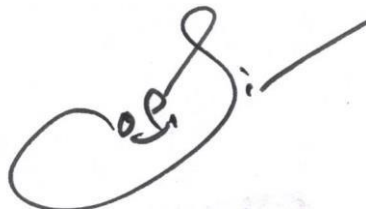
SN	Minimum Technical Specification		Bidders Response (Fully/Partially Compliance)
1	Brand	 (Should be mentioned by bidder)	
2	Model	 (Should be mentioned by bidder)	
3	Type	UTP CAT6	
4	Conductor	Oxygen free copper (99.95% purity)	
5	Insulation	HDPE	
6	Separator	PE	
7	Sheath	PVC	
8	Cable Length	300 Mtr	
9	Accessories	Wiring Duct, RJ45 and all other accessories required for laying cable	
10	Warranty	Min. 1 years	

11. Technical Specification for Consoling 6mm Power Cable

SN	Minimum Technical Specification	Bidders Response (Fully/Partially Compliance)
1	Outdoor power cable 6mm with power coated	

12. Installation and Configuration

SN	Install and configure	Bidders Response (Fully/Partially Compliance)
1	Installation and Configuration Charge for CCTV including all needed	



electrical goods and accessories with fiber laying	
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13. Pole arm and pole

SN	Install and configure	Bidders Response (Fully/Partially Compliance)
1	<u>Pole :-</u> 9 Meter Galvanized Pole For Existing ANPR	
2	<u>Pole Arm</u> 5 meter Pole arm	
3	<u>Pole Arm</u> 2.4 meter Pole arm	

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Section I. Instructions to Bidders

A. General

1. Scope of Bid	1.1 The Purchaser <i>indicated in the BDS</i> issues this Bidding Document for the supply of Goods and Related Services incidental thereto as specified in Section V, Schedule of Requirements. The name and identification of contracts are <i>indicated in BDS</i>. 1.2 Throughout this Bidding Document : (a) the term “in writing” means communicated in written form with proof of receipt; (b) if the context so requires, singular means plural and vice versa; and (c) “day” means calendar day.
2. Source of Funds	2.1 GoN Funded: In accordance with its annual program and budget, approved by the GoN, the Purchaser intends to apply a portion of the allocated budget to eligible payments under the contract(s) <i>indicated in the BDS</i> for which this Bidding Document is issued. Or DP Funded: The GoN has applied for or received financing (hereinafter called “funds”) from the Development Partner (hereinafter called “the DP”) <i>indicated in the BDS</i> toward the cost of the project <i>named in the BDS</i>. The GoN intends to apply a portion of the funds to eligible payments under the contract(s) for which this Bidding Document is issued. 2.2 DP Funded: Payment by the DP will be made only at the request of the GoN and upon approval by the DP in accordance with the terms and conditions of the financing agreement between the GoN and the DP (hereinafter called the “Loan Agreement”), and will be subject in all respects to the terms and conditions of that Loan Agreement. No party other than the GoN shall derive any rights from the Loan Agreement or have any claim to the funds. 2.3 Public Entity's Resources Funded.
3. Fraud and Corruption	3.1 Procuring Entities as well as Bidders, suppliers and contractors and their sub-contractors shall adhere to the highest standard of ethics during the procurement and execution of such contracts. In pursuance of this;;

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	(a) the Purchaser adopts, for the purposes of this provision, the terms as defined below: (i) “corrupt practice” means the offering, giving, receiving, or soliciting, directly or indirectly, anything of value to influence improperly the actions of another party; (ii) “fraudulent practice” means any act or omission, including a misrepresentation, that knowingly or recklessly misleads, or attempts to mislead, a party to obtain a financial or other benefit or to avoid an obligation; (iii) “coercive practice” means impairing or harming, or threatening to impair or harm, directly or indirectly, any party or the property of the party to influence improperly the actions of a party; (iv) “collusive practice” means an arrangement between two or more parties designed to achieve an improper purpose, including influencing improperly the actions of another party. (v) “obstructive practice” means (a) deliberately destroying, falsifying, altering, or concealing of evidence material to an investigation; (b) making false statements to investigators in order to materially impede an investigation; (c) failing to comply with requests to provide information, documents, or records in connection with an investigation; (d) threatening, harassing, or intimidating any party to prevent it from disclosing its knowledge of matters relevant to the investigation or from pursuing the investigation; or (e) materially impeding GoN/DP’s contractual rights of audit or access to information; and (vi) “integrity violation” is any act which violates Anticorruption Policy, including (i) to (v) above and the following: abuse, conflict of interest, violations of GoN/DP sanctions, retaliation against whistleblowers or witnesses, and other violations of Anticorruption Policy, including failure to adhere to the highest ethical standard. (b) the Purchaser will reject a proposal for award if it determines that the Bidder recommended for award has, directly or through an agent, engaged in corrupt, fraudulent, collusive, coercive, or obstructive practices or other integrity violations in competing for the contract;
	(c) DP will cancel the portion of the financing allocated to a contract if it determines at any time that representative(s) of the GoN or of a beneficiary of DP-financing engaged in corrupt, fraudulent, collusive, or coercive practices or other integrity violations during the procurement or the execution of that contract, without the GoN having taken timely and appropriate action satisfactory to DP to remedy the situation. (d) DP will impose remedial actions on a firm or an individual, at any time, in accordance with DP’s Anticorruption Policy and related Guidelines (as amended from time to time), including declaring ineligible, either

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	indefinitely or for a stated period of time, to participate in DP-financed, -administered, or -supported activities or to benefit from an DP-financed, -administered, or -supported contract, financially or otherwise, if it at any time determines that the firm or individual has, directly or through an agent, engaged in corrupt, fraudulent, collusive, coercive, or obstructive practices or other integrity violations; and (e) The Supplier shall permit the GoN/DP to inspect the Supplier's accounts and records relating to the performance of the Supplier and to have them audited by auditors appointed by the GoN/DP, if so required by the GoN/DP.
	3.2 The Bidder shall not carry out or cause to carry out the following acts with an intention to influence the implementation of the procurement process or the procurement agreement : (a) give or propose improper inducement directly or indirectly, (b) distortion or misrepresentation of facts, (c) engaging in corrupt or fraudulent practice or involving in such act, (d) interference in participation of other competing bidders, (e) coercion or threatening directly or indirectly to cause harm to the person or the property of any person to be involved in the procurement proceedings, (f) collusive practice among bidders before or after submission of bids for distribution of works among bidders or fixing artificial/uncompetitive bid price with an intention to deprive the Purchaser the benefit of open competitive bid price, (g) Contacting the Purchaser with an intention to influence the Purchaser with regards to the bids or interference of any kind in examination and evaluation of the bids during the period from the time of opening of the bids until the notification of award of contract.
	3.3 PPMO, on the recommendation of the Procuring Entity may blacklist a Bidder for a period of one (1) to three (3) years for its conduct including on the following grounds and seriousness of the act committed by the bidder: (a) if convicted by a court of law in a criminal offence which disqualifies the Bidder from participating in the contract, (b) if it is established that the contract agreement signed by the Bidder was based on false or misrepresentation of Bidder's qualification information, (c) if it at any time determines that the firm has, directly or through an agent, engaged in corrupt, fraudulent, collusive, coercive, or obstructive practices in competing for, or in executing, a GoN/DP-financed contract. (d) if the Successful Bidder fails to sign the Contract.
	3.4 A bidder declared blacklisted and ineligible by the GoN, Public Procurement Monitoring Office (PPMO) and/or the DP in case of DP funded project, may be ineligible to bid for a contract during the period

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	of time determined by the GoN, PPMO and/or the DP including credit information bureau of Nepal. 3.5 In case of a natural person or firm/institution/company which is already declared blacklisted and ineligible by the GoN, any other new or existing firm/institution/company owned partially or fully by such Natural person or Owner or Board of director of blacklisted firm/institution/company; shall not be eligible bidder.
	3.6 Furthermore, Bidders shall be aware of the provisions of GCC 28.3.
4. Eligible Bidders	4.1 This Invitation for Bids is open to eligible Bidders from all countries, except for any <i>specified in the BDS.</i> 4.2 A Bidder may be a natural person, private entity, government-owned entity (subject to ITB 4.4) or any combination of them with a formal intent to enter into an agreement or under an existing agreement in the form of a Joint Venture (JV). Maximum number of partners in JV shall be as <i>specified in BDS</i> .In the case of a JV: (a) all parties to the JV shall be jointly and severally liable; and (b) a JV shall nominate a representative who shall have the authority to conduct all businesses for and on behalf of any and all the parties of the JV during the bidding process and, in the event the JV is awarded the Contract, during contract execution. 4.3 A Bidder shall not have a conflict of interest. Any Bidders found to have a conflict of interest shall be disqualified. A Bidder may be considered to be in a conflict of interest with one or more parties in this bidding process if, including but not limited to: (a) have controlling shareholders in common; (b) receive or have received any direct or indirect subsidy from any of them; (c) have the same legal representative for purposes of this Bid; (d) have a relationship with each other, directly or through common third parties, that puts them in a position to have access to information about or influence on the Bid of another Bidder, or influence the decisions of the Purchaser regarding this bidding process; (e) a Bidder participates in more than one bid in this bidding process. Participation by a Bidder in more than one Bid will result in the disqualification of all Bids in which it is involved. However, this does not limit the inclusion of the same subcontractor, not otherwise participating as a Bidder, in more

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	than one bid; or (f) a Bidder or any of its affiliates participated as a consultant in the preparation of the design or technical specifications of the goods and services that are the subject of the bid. 4.4 A Bidder that is under a declaration of ineligibility by the GoN/DP in accordance with ITB 3.4, at the date of the deadline for bid submission or thereafter, shall be disqualified. 4.5 A GoN-owned enterprise may also participate in the bid if it is legally and financially autonomous, it operates under commercial law, and it is not dependent agency of the Purchaser. 4.6 Bidders shall provide such evidence of their continued eligibility satisfactory to the Purchaser, as the Purchaser shall reasonably request. 4.7 Firms shall be excluded in any of the cases, if (a) by an act of compliance with a decision of the United Nations Security Council taken under Chapter VII of the Charter of the United Nations prohibits any import of goods or Contracting of works or services from that country or any payments to persons or entities in that country. (b) DP Funded: as a matter of law or official regulation, GoN prohibits commercial relations with that country, provided that the DP is satisfied that such exclusion does not preclude effective competition for the supply of goods or related services required; (c) DP Funded: a firm has been determined to be ineligible by the DP in relation to their guidelines or appropriate provisions on preventing and combating fraud and corruption in projects financed by them.
	4.8 A bidder and all parties constituting the Bidder shall have the nationality of an eligible country as defined by the concerned DP for DP funded projects. 4.9 The domestic Bidder who has obtained Permanent Account Number (PAN) and Value Added Tax (VAT) registration certificate(s) and Tax clearance certificate or proof of submission of tax return from the Inland Revenue Office shall only be eligible. The foreign bidder submitting the documents indicated in the BDS at the time of bid submission and a declaration to submit the document(s) indicated in the BDS at the time of contract agreement shall only be eligible
5. Eligible Goods and Related Services	5.1 All goods and related services to be supplied under the contract are eligible, unless their origin is from a country specified in the BDS. 5.2 For purposes of this clause, “origin” means the place where the goods are mined, grown, or produced, or the place from which the related services are



	supplied 5.3 The origin of goods and services is distinct from the nationality of the Bidder.
6. Site Visit	6.1 For goods contracts requiring installation/ commissioning/ networking or similar services at site, the Bidder, at the Bidder's own responsibility and risk, is encouraged to visit and examine the Site and obtain all information that may be necessary for preparing the Bid and entering into a contract for the supply of goods and related services. 6.2 The Bidder should ensure that the Purchaser is informed of the visit in adequate time to allow it to make appropriate arrangements. 6.3 The costs of visiting the Site shall be at the Bidder's own expense.

B. Contents of Bidding Document

7. Sections of the Bidding Document	7.1 The Bidding Document consist of Parts 1, 2, and 3, which include all the Sections indicated below, and should be read and construed in conjunction with any Addenda issued in accordance with ITB 9. PART 1 Bidding Procedures • Section I. Instructions to Bidders (ITB) • Section II. Bid Data Sheet (BDS) • Section III. Evaluation and Qualification Criteria • Section IV. Bidding Forms PART 2 Supply Requirements • Section V. Schedule of Requirements PART 3 Conditions of Contract and Contract Forms • Section VI. General Conditions of Contract (GCC) • Section VII. Special Conditions of Contract (SCC) - Section VIII. Contract Forms 7.2 The Purchaser will reject any Bid submission (in case of hard copy submission) if the Bidding Document was not purchased directly from the Purchaser, or through its assigned office as stated in the invitation for bids or has not deposited (in case of electronically submission) the cost of Bidding Document as stated in the invitation for bids. 7.3 The Bidder is expected to examine all instructions, forms, terms, and
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	specifications in the Bidding Document as well as in Amendments, if any. Failure to furnish all information or documentation required by the Bidding Document may result in the rejection of the Bid. 7.4 The Invitation for Bids issued by the Purchaser is not part of the Bidding Document
8. Clarification of Bidding Document/P re-bid meeting	8.1 A prospective Bidder requiring any clarification of the Bidding Document shall contact the Purchaser in writing at the Purchaser's address indicated in the BDS. The Purchaser will respond in writing to any request for clarification, provided that such request is received within the time limit specified in the BDS prior to the deadline for submission of Bids. The Purchaser shall forward copies of its response to all Bidders who have acquired the Bidding Document directly from it, including a description of the inquiry but without identifying its source. Should the Purchaser deem it necessary to amend the Bidding Document as a result of a clarification, it shall do so following the procedure under ITB 9 and 24.2. 8.2 The purchaser may organize a pre-bid meeting of Bidders before the deadline for submission of Bids at the place, date and time as specified in the BDS to provide information relating to Bidding Documents, Technical specifications and the like matters. Should the purchaser deem it necessary to amend the Bidding Document as a result of a clarification, it shall do so following the procedure under ITB 9 and ITB 24.2.
9. Amendment of Bidding Document	9.1 At any time prior to the deadline for submission of the Bids, the Purchaser may amend the Bidding Document by issuing addenda. 9.2 Any addendum issued shall be part of the Bidding Document and shall be communicated in writing to all who have obtained the Bidding Document directly from the Purchaser. Such Addendum notice shall also be published in the National newspaper. 9.3 To give prospective Bidders reasonable time in which to take an addendum into account in preparing their Bids, the Purchaser may, at its discretion, extend the deadline for the submission of the Bids, pursuant to ITB 24.2.

C. Preparation of Bids

10. Cost of Bidding	10.1 The Bidder shall bear all costs associated with the preparation and submission of its Bid, and the Purchaser shall not be responsible or liable for those costs, regardless of the conduct or outcome of the bidding process.
11. Language of Bid	11.1 The Bid, as well as all correspondence and documents relating to the Bid exchanged by the Bidder and the Purchaser, shall be written in the



	language <i>specified in the BDS</i>. Supporting documents and printed literature that are part of the Bid may be in another language provided they are accompanied by an accurate translation of the relevant passages in the language <i>specified in the BDS</i>, in which case, for purposes of interpretation of the Bid, such translation shall govern.
12. Documents Comprising the Bid	12.1 The Bid shall comprise the following: (a) Bid Submission Letter and the applicable Price Schedules, in accordance with ITB Clauses 13, 15, and 16; (b) Bid Security in accordance with ITB 21; (c) alternative bids, if permissible, in accordance with ITB 14; (d) written confirmation authorizing the signatory of the Bid to commit the Bidder, in accordance with ITB 22; (e) documentary evidence in accordance with ITB 17 establishing the Bidder's eligibility to bid; (f) documentary evidence in accordance with ITB Clauses 18 and 31, that the Goods and Related Services conform to the Bidding Document; (g) documentary evidence in accordance with ITB 19 establishing the Bidder's qualifications to perform the contract if its Bid is accepted; and (h) any other required documents, which is not against the provision of Procurement Act/Regulation/Directives and Standard Bidding Document issued by PPMO, <i>required in the BDS</i>. 12.2 The Bidder is solely responsible for the authenticity of the submitted documents.
13. Bid Submission Letter and Price Schedules	13.1 The Bidder shall submit the Bid Submission Letter using the form furnished in Section IV, Bidding Forms. This form must be completed without any alterations to its format, and no substitutes shall be accepted. All blank spaces shall be filled in with the information requested. 13.2 The Bidder shall submit the Price Schedules for Goods and Related Services, according to their origin as appropriate, using the forms furnished in Section IV, Bidding Forms
14. Alternative Bids	14.1 Unless otherwise <i>indicated in the BDS</i>, alternative bids shall not be considered.
15. Bid Prices and	15.1 The Bidder shall complete the appropriate Price Schedule and the sources of Goods schedules included herein, stating the unit prices, total cost per



Discounts	item, the total Bid amount and the expected countries of origin of the Goods to be supplied under the contract. 15.2 Prices quoted in the Price Schedules shall be included the cost of goods, other taxes already paid or payable on the components and raw material used in the manufacture or assembly of the item, the customs duties, transportation cost up to final delivery, insurance cost, unloading, and any other cost for (incidental) services, if any, related to the delivery of goods. All risks and responsibilities up to the final destination including installation and commissioning of Goods, if applicable, shall be borne by the Supplier. If a Price Schedule shows items listed but not priced, their prices shall be assumed to be included in the prices of other items. Items not listed in the Price Schedule shall be assumed not to be included in the Bid, and provided that the Bid is substantially responsive, the corresponding adjustment shall be applied in accordance with ITB 32.3 15.3 Prices quoted by the Bidder shall be fixed during the Bidder's performance of the Contract and not subject to variation on any account, unless otherwise <i>specified in the BDS</i>. A Bid submitted with an adjustable price quotation shall be treated as non responsive and shall be rejected, pursuant to ITB 31. However, if in <i>accordance with the BDS</i>, prices quoted by the Bidder shall be subject to adjustment during the performance of the Contract, a Bid submitted with a fixed price quotation shall not be rejected, but the price adjustment shall be treated as zero. 15.4 The Bidder's separation of price components in accordance with ITB 15.1 above will be solely for the purpose facilitating the comparison of bids by the Purchaser and will not in any way limit the Purchaser's right to contract on any of the terms offered. 15.5 If the Bidder intends to offer any unconditional discount, it shall always be expressed in fixed percentage and that shall not vary as the quantity varies and be applicable to each unit rate. The methodology for its application shall be provided in bid submission letter.
16. Currencies of Bid	16.1 All Prices shall be quoted in Nepalese Rupees.
17. Documents Establishing the Eligibility of the Bidder	17.1 To establish their eligibility in accordance with ITB 4, Bidders shall: (a) complete the eligibility declarations in the Bid Submission Letter, included in Section IV, Bidding Forms; and (b) if the Bidder is an existing or intended JV in accordance with ITB 4.2, submit a copy of the JV Agreement, or a letter of intent to enter into such an Agreement. The respective document shall be



	signed by all legally authorized signatories of all the parties to the existing or intended JV, as appropriate. (c) submit the copy of the documents as <i>specified in BDS</i>.
18. Documents Establishing the Conformity of the Goods and Related Services to the Bidding Document	18.1 To establish the conformity of the Goods and Related Services to the Bidding Document, the Bidder shall furnish as part of its Bid the documentary evidence that the Goods and Related Services conform to the requirements specified in Section V, Supply Requirements. 18.2 The documentary evidence may be in the form of literature, drawings or data, and shall consist of a detailed item-by-item description of the essential technical and performance characteristics of the Goods and Related Services, demonstrating substantial responsiveness of the Goods and Related Services to those requirements, and if applicable, a statement of deviations and exceptions to the provisions of Section V, Schedule of Requirements. 18.3 Standards for workmanship, process, material, and equipment, as well as references to brand names or catalogue numbers specified by the Purchaser in the Section V, Schedule of Requirements, are intended to be descriptive only and not restrictive. The Bidder may offer other standards of quality, brand names, and/or catalogue numbers, provided that it demonstrates, to the Purchaser's satisfaction, that the substitutions ensure substantial equivalence or are superior to those specified in Section V, Schedule of Requirements.
19. Documents Establishing the Qualifications of the Bidder	19.1 The documentary evidence of the Bidder's qualifications to perform the contract, if its bid is accepted, shall establish to the Purchaser's satisfaction that the Bidder meets each of the qualification criterion specified in Section III, Evaluation and Qualification Criteria. 19.2 If so <i>required in the BDS</i>, a Bidder that does not manufacture or produce the Goods it offers to supply shall submit the Manufacturer's Authorization using the form included in Section IV, Bidding Forms to demonstrate that it has been duly authorized by the manufacturer or producer of the Goods to supply these Goods in Nepal and take care of the warranty provided. 19.3 If so <i>required in the BDS</i>, a Bidder that does not conduct business within Nepal shall submit evidence that it will be represented by an Agent in Nepal equipped and able to carry out the Supplier's maintenance, repair and spare parts-stocking obligations prescribed in the Conditions of Contract and/or Technical Specifications. 19.4 A foreign Bidder wishing to have or already having a local agent shall state the following:



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a. Name and address of the Agent/Representative,



	b. The Agent/Representative providing type of services, c. Amount of commission if the Agent/Representative is entitled to get such payment and if it participates in the procedure of payment, d. Other agreement with Agent/Representative, if any, e. Bidder shall certify in the Letter of Authorization as follows: "We certify that the statement and disclosure made by us on the above are complete and true to the best of our knowledge and belief", 19.5 If a foreign Bidder in its Bid, has not provided the information mentioned in ITB 19.4 or has submitted its bid stating that the Bidder does not have a local agent and later it is proved that the bidder has a local agent or it is proved that the commission mentioned in the Bid is less than the commission received by the local agent then the Purchaser shall initiate proceedings to blacklist such bidder in accordance with ITB 3.3.
20. Period of Validity of Bids	20.1 Bid shall remain valid for a period <i>specified in the BDS</i> after the bid submission deadline date prescribed by the purchaser. A bid valid for a shorter period shall be rejected by the purchaser as nonresponsive. 20.2 In exceptional circumstances, prior to the expiration of the bid validity period, the Purchaser may request Bidders to extend the period of validity of their Bids. The request and the responses shall be made in writing. If a Bid Security is requested in accordance with ITB 21, it shall also be extended for a corresponding period. A Bidder may refuse the request without forfeiting its Bid Security. A Bidder granting the request shall not be required or permitted to modify its Bid and to include any additional conditions against the provisions specified in Bid Documents.
21. Bid Security	21.1 The Bidder shall furnish as part of its bid, in original form a Bid Security as <i>specified in the BDS</i>. 21.2 If a bid security is specified pursuant to ITB 21.1, the bid security shall be a demand guarantee in any of the following forms at the Bidder's option: (a) original copy of an unconditional bank guarantee from Commercial Bank or Financial Institution eligible to issue Bank Guarantee as per prevailing Law or; (b) original copy of cash deposit voucher in the Purchaser 's Account as <i>specified in BDS</i>. In case of a bank guarantee, the Bid Security shall be submitted using



the Bid Security Form included in Section IV, Bidding Forms. The form must include the complete name of the Bidder. The Bid Security shall be valid for minimum thirty (30) days beyond the end of the validity period of the bid. This shall also apply if the period for bid validity is extended.

The bid security issued by any foreign Bank outside Nepal must be counter guaranteed by an **Commercial Bank or Financial Institution eligible to issue Bank Guarantee as per prevailing Law in Nepal.**

21.3 If a bid Security is required in accordance with ITB 21.1, any Bid not accompanied by an enforceable and compliant Bid Security in accordance with ITB 21.2, shall be rejected by the Purchaser as nonresponsive. In case of e- Submission, if the scanned copy of an acceptable bid security letter is not uploaded with the electronic bid then bid shall be rejected.

21.4 If a Bid Security is specified pursuant to ITB 21.1, the Bid Security of unsuccessful Bidders shall be returned within three (3) days upon the successful Bidder furnishing of the signed Contract Agreement and the Performance Security pursuant to ITB 42.

21.5 If a Bid Security is specified pursuant to ITB 21.1, the Bid Security of the successful Bidder shall be returned as promptly as possible once the successful Bidder has signed the Contract Agreement and furnished the required Performance Security.

21.6 The Bid Security may be forfeited:

(a) a Bidder requests for withdrawal or modification of its bid, except as provided in ITB 20.2

(i) during the period of bid validity specified by the Bidder on the Letter of Bid, in case of electronic submission;

(ii) from the period twenty-four hours prior to bid submission deadline up to the period of bid validity specified by the Bidder on the Letter of Bid, in case of hard copy submission.

(b) a Bidder changes the prices or substance of the bid while providing information pursuant to clause 29.1;

(c) a Bidder involves in fraud and corruption pursuant to clause 3.1;

(d) the successful Bidder fails to:

(i) furnish a performance security in accordance with ITB 41.1;

(ii) sign the Contract in accordance with ITB 42.1; or



	(iii) accept the correction of arithmetical errors pursuant to clause 33. 21.7 The Bid Security of a JV must be in the name of the JV that submits the bid. If the JV has not been legally constituted at the time of bidding, the Bid Security shall be in the names of all future partners as named in the letter of intent mentioned in ITB 17.1 (b).
22. Format and Signing of Bid	22.1 The Bidder shall prepare bid as described in ITB 12 and shall be typed or written in indelible ink and shall be signed by a person duly authorized to sign on behalf of the Bidder. This authorization shall consist of a written confirmation as <i>specified in the BDS</i> and shall be attached to the Bid. 22.2 Any amendments such as interlineations, erasures, or overwriting shall be valid only if they are signed or initialed by the person signing the Bid.

D. Submission and Opening of Bids

23. Sealing and Marking of Bids	23.1 Unless otherwise specified in BDS, Bidders shall submit their bids by electronic or by mail/ by hand/ by courier. Bidders submitting bids electronically shall follow the electronic bid submission procedures <i>specified in the BDS</i>. 23.2 Bidders submitting bids by mail or by hand or by courier shall enclose the original and each copy of the Bid, including alternative bids, if permitted in accordance with ITB 14, in separate sealed envelopes, duly marking the envelopes as “ORIGINAL”, “ALTERNATIVE” and “COPY.” These envelopes containing the original and the copies shall then be enclosed in one single envelope. The rest of the procedure shall be in accordance with ITB 23.2.1 and 23.2.2. 23.2.1 The inner and outer envelopes shall: (a) bear the name and address of the Bidder; (b) be addressed to the Purchaser in accordance with ITB 23.1; and (c) bear a warning "NOT TO OPEN BEFORE THE TIME AND DATE FOR BID OPENING". 23.2.2 If all envelopes are not sealed and marked as required, the Purchaser will assume no responsibility for the misplacement or premature opening of the bid.
24. Deadline for Submission of Bids	24.1 Bids must be received by the Purchaser at the address and no later than the date and time <i>indicated in the BDS</i>. In case of e-submission, the standard time for e-submission is Nepal Standard Time as set out in the server. The e-procurement system will accept the e-submission of bid



	from the date of publishing of notice and will automatically not allow the e-submission of bid after the deadline for submission of bid. 24.2 The Purchaser may, at its discretion, extend the deadline for the submission of Bids by amending the Bidding Document in accordance with ITB 9, in which case all rights and obligations of the Purchaser and Bidders previously subject to the deadline shall thereafter be subject to the deadline as extended.
25. Late Bids	25.1 The Purchaser shall not consider any Bid that arrives after the deadline for submission of Bids, in accordance with ITB 24. Any Bid received by the Purchaser after the deadline for submission of Bids shall be declared late, rejected, and returned unopened to the Bidder.
26. Withdrawal, or Modification of Bids	26.1 A bidder may withdraw, or modify its bid after it has been submitted either in hard copy or by e-Submission. Procedures for withdrawal or modification of submitted bids are as follows: (i) Bids submitted in hard Copy a) Bidders may withdraw or modify its bids by sending a written notice in a sealed envelope, duly signed by an authorized representative, and shall include a copy of the authorization in accordance with ITB 20.2 before 24 hours prior to the last deadline of submission of bid. The corresponding modification of the bid must accompany the respective written notice. All notices must be: (aa) prepared and submitted in accordance with ITB 20 and ITB 21, and in addition, the respective envelopes shall be clearly marked “WITHDRAWAL”, “MODIFICATION;” and (bb) received by the Purchaser 24 hours prior to the deadline prescribed for submission of bids, in accordance with ITB 24. ii) E-submitted bids. 26.1 a) Bidder may submit modification or withdrawal prior to the deadline prescribed for submission of bids through e-GP system by using the forms and instructions provided by the system. Once a Bid is withdrawn, bidder shall not able to submit another bid for the same bid. 26.2 Bids requested to be withdrawn in accordance with ITB 26.1 (i) shall be returned unopened to the Bidders after the end of bid opening process. 26.3 In case of bids submitted in hard copy no bid shall be withdrawn or modified in the interval between 24 hours prior time of the deadline for submission of bids and the expiration of the period of bid validity specified by the Bidder on the Letter of Bid or any extension thereof. In case of e-submitted bids no bids shall be withdrawn or modified in the interval between deadline for submission of bids and the expiration of the period of bid validity specified by the Bidder on the bid submission form or

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	any extension there of. 26.4 Except in case of any modification or correction in bid document made by procuring entity, Bidder may submit request for withdrawal or Modification only one time. 26.5 In case of hard copy bid, no bid may be withdrawn if the bid has already been modified; except in case of any modification or correction in bid document by procuring entity.
27. Bid Opening	27.1 The Purchaser's bid opening committee shall conduct the bid opening in public in the presence of bidder or its representative who choose to attend at the address, date and time <i>specified in the BDS</i>. The opening committee shall download the e-submitted bid files. The e-procurement system allows the Purchaser to download the e-submitted bid files (report) only after bid opening date and time after login simultaneously by two members of the Bid opening committee. Electronically submitted bid shall be opened at first in the same time and date as <i>specified above</i>. Electronic Bids shall be opened one by one and read out. The e-submitted bids must be readable through open standards interfaces. Unreadable and or partially submitted bid files shall be considered incomplete. 27.2 Before opening the bids the opening committee shall separate the envelopes of the bids received after the deadline of bid submission, the envelopes containing an application given for WITHDRAWAL, MODIFICATION of bids and the envelopes of bids duly registered. The bids received after the deadline of submission shall be returned to the concerned bidder unopened. Then envelopes marked "WITHDRAWAL" shall be opened first, read out, and recorded, and the envelope containing the corresponding Bid shall not be opened, but returned to the Bidder. If the withdrawal notice is not accompanied by a copy of the valid authorization pursuant to ITB 22.2, the withdrawal shall not be permitted and the corresponding Bid will be opened. Envelopes marked "MODIFICATION" shall be opened, read out, and recorded with the corresponding Bid. No Bid shall be modified unless the corresponding Modification Notice contains a valid authorization to request the modification and is read out and recorded at bid opening. Only envelopes that are opened, read out, and recorded at bid opening shall be considered further. 27.3 All other envelopes shall be opened one at a time, and the following read out and recorded: the name of the Bidder and whether there is a modification; the Bid Prices (per lot if applicable), any discounts and alternative offers; the presence of a Bid Security, if required; if there is discrepancy between figure and words, description of such discrepancy; whether the bid form is signed by the bidder or his agent; and any other details as the Purchaser may consider appropriate. Only



	Discounts and alternative offers read out and recorded at bid opening shall be considered for evaluation. No Bid shall be rejected at bid opening except for late bids, in accordance with ITB 25.1. 27.4 The opening committee shall prepare a record of the bid opening that shall include, as a minimum: the name of the Bidder and whether there is a withdrawal, or modification; the Bid Price, per lot if applicable, any discounts and alternative offers if they were permitted; and the presence or absence of a Bid Security. The Bidders' representatives who are present shall be requested to sign the record. The omission of a Bidder's signature on the record shall not invalidate the contents and effect of the record. A copy of the record shall be distributed to all Bidders who submitted bids in time, and posted on line when electronic bidding is permitted. The Bidders' representatives who are present shall also be requested to sign an attendance sheet.
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E. Evaluation and Comparison of Bids

28. Confidentiality	28.1 Information relating to the examination, evaluation, comparison, and post-qualification of Bids, and recommendation of contract award, shall not be disclosed to Bidders or any other persons not officially concerned with such process until publication of the Contract award; thereafter, information will be disclosed in accordance with ITB 40.1. 28.2 Any attempt by a Bidder to influence the Purchaser in the examination, evaluation, comparison, and post-qualification of the Bids or Contract award decisions may result in the rejection of its Bid. 28.3 Notwithstanding ITB 28.2, from the time of bid opening to the time of Contract award, if any Bidder wishes to contact the Purchaser on any matter related to the bidding process, it should do so in writing.
29. Clarification of Bids	29.1 To assist in the examination, evaluation, comparison and post-qualification of the Bids, the Purchaser may, at its discretion, ask any Bidder for a clarification of its Bid. Any clarification submitted by a Bidder with regard to its Bid and that is not in response to a request by the Purchaser shall not be considered. The Purchaser's request for clarification and the response shall be in writing. No change in the prices or substance of the Bid shall be sought, offered, or permitted, except to confirm the correction of arithmetic errors discovered by the Purchaser in the evaluation of the Bids, in accordance with ITB 33.
30. Deviations, Reservations, and Omissions	30.1 During the evaluation of bids, the following definitions apply: (a) "Deviation" is a departure from the requirements specified in the Bidding Document;

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	(b) “Reservation” is the setting of limiting conditions or withholding from complete acceptance of the requirements specified in the Bidding Document; and (c) “Omission” is the failure to submit part or all of the information or documentation required in the Bidding Document.
31.Determination of Responsiveness	31.1 The Purchaser’s determination of the responsiveness of a Bid is to be based on the contents of the Bid itself, as defined in ITB 12. 31.2 A substantially responsive bid is one that meets the requirements of the Bidding Document without material deviation, reservation, or omission. A material deviation, reservation, or omission is one that, (d) if accepted, would: (i) affect in any substantial way the scope, quality, or performance of the Goods and Related Services specified in Section V, Schedule of Requirements; or (ii) limits in any substantial way, inconsistent with the Bidding Document, the Purchaser’s rights or the Bidder’s obligations under the proposed Contract; or (e) if rectified, would unfairly affect the competitive position of other Bidders presenting substantially responsive bids. 31.3 The Purchaser shall examine the technical aspects of the bid in particular, to confirm that all requirements of Section V, Schedule of Requirements have been met without any material deviation or reservation. 31.4 In Case, a corruption case is being filed to Court against the Natural Person or Board of Director of the firm/institution /company or any partner of JV, such Natural Person or Board of Director of the firm/institution /company or any partner of JV such bidder’s bid shall be excluded from the evaluation, if public entity receives instruction from Government of Nepal.
32.Non-material Non-conformities	32.1 The Purchaser may regard a Bid as responsive even if it contains minor deviations that do not materially alter or depart from the characteristics, terms, conditions and other requirement set forth in the Bidding Document or if it contains errors or oversights that are capable of being corrected without affecting the substance of the Bid.



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	32.2 Provided that a Bid is substantially responsive, the Purchaser may request that the Bidder submit the necessary information or documentation, within a reasonable period of time, to rectify non-material non-conformities or omissions in the Bid related to documentation requirements. Requesting information or
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	documentation on such non-conformities shall not be related to any aspect of the price of the Bid. Failure of the Bidder to comply with the request may result in the rejection of its Bid. 32.3 Provided that a Bid is substantially responsive, the Purchaser shall rectify non-material non-conformities or omissions. To this effect, the Bid Price shall be adjusted, for comparison purposes only, to reflect the price of the missing or non-conforming item or component. The adjustment shall be made using the method indicated in Section III, Evaluation and Qualification Criteria. 32.4 If small differences are found such as in technical specification, description, feature which does not make the bid to be rejected, then the cost, which is calculated to the extent possible due to such differences, shall be included while evaluating bid. 32.5 If the value is found fifteen percent more than the quoted amount of the bidder on account of small differences pursuant to ITB 32.4, such bid shall be considered irresponsive in substance and shall not be considered for evaluation.
33. Correction of Arithmetical Errors	33.1 Provided that the Bid is substantially responsive, the Purchaser shall correct arithmetical errors on the following basis: a) if there is a discrepancy between the unit price and the total price that is obtained by multiplying the unit price and quantity, the unit price shall prevail and the total price shall be corrected, unless in the opinion of the Purchaser there is an obvious misplacement of the decimal point in the unit price, in which case the total price as quoted shall govern and the unit price shall be corrected; b) if there is an error in a total corresponding to the addition or subtraction of subtotals, the subtotals shall prevail and the total shall be corrected; and c) if there is a discrepancy between words and figures, the amount in words shall prevail, unless the amount expressed in words is related to an arithmetic error, in which case the amount in figures shall prevail subject to (a) and (b) above. 33.2 If the Bidder that submitted the lowest evaluated Bid does not accept the correction of errors, its Bid shall be rejected and the bid security shall be forfeited.



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34. Goods manufactured in Nepal to be procured	34.1 If the price of goods manufactured in Nepal, are higher up to fifteen percent than that of manufactured in foreign countries, the goods manufactured in Nepal shall be preferred in the evaluation of the Bids. 34.2 for granting such preference pursuant to 34.1, the bidder must submit the country of origin issued by competent authority stating that the
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	value added of the goods in Nepal is more than 30 percent. 34.3 In case of granting preference, the bid shall be compared (for bid comparison only) by adding an amount equal to 15 percent of the bid price of the such Goods manufactured in Nepal to the bid price of Goods manufactured outside Nepal and lowest evaluated bid shall be determined.
35.Evaluation and Comparison of Bids	35.1 The Purchaser shall evaluate and compare each Bid that has been determined, up to this stage of the evaluation, to be substantially responsive. 35.2 To evaluate a Bid, the Purchaser shall only use all the criteria and methodologies defined in this Clause and in Section III, Evaluation and Qualification Criteria. No other criteria or methodology shall be permitted. 35.3 In Case, a corruption case is being filed to Court against the Natural Person or Board of Director of the firm/institution /company or any partner of JV, such Natural Person or Board of Director of the firm/institution /company or any partner of JV such bidder's bid shall be excluded from the evaluation, if public entity receives instruction from Government of Nepal.
36.Post-qualification of the Bidder	36.1 The Purchaser shall determine to its satisfaction whether the Bidder that is selected as having submitted the lowest evaluated and substantially responsive Bid is qualified to perform the Contract satisfactorily. 36.2 The determination shall be based upon an examination of the documentary evidence of the Bidder's qualifications submitted by the Bidder, pursuant to ITB 19. 36.3 An affirmative determination shall be a prerequisite for award of the Contract to the Bidder. A negative determination shall result in disqualification of the Bid, in which event the Purchaser shall proceed to the next lowest evaluated bid to make a similar determination of that Bidder's capabilities to perform satisfactorily.
37.Purchaser's Right to Accept Any Bid, and to Reject Any or All Bids	37.1 The Purchaser reserves the right to accept or reject any Bid, and to cancel the bidding process and reject all Bids at any time prior to Contract award, without thereby incurring any liability to the Bidders.

F.Award of Contract

38.Award	38.1 The Purchaser shall select to award the Contract to the Bidder whose offer has been determined to be the lowest evaluated Bid and is substantially responsive to the Bidding Document, provided further
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Criteria	that the Bidder is determined to be qualified to perform the Contract satisfactorily.
39.Purchaser's Right to Vary Quantities at Time of Award	39.1 At the time the Contract is awarded, the Purchaser reserves the right to increase or decrease the quantity of Goods and Related Services originally specified in Section V, Schedule of Requirements, provided this does not exceed the percentages indicated in the BDS , and without any change in the unit prices or other terms and conditions of the Bid and the Bidding Document.
40.Notification of Intention to Award	40.1 The Purchaser shall notify the concerned Bidder whose bid has been selected in accordance with ITB 38.1 within seven days of the selection of the bid, in writing that the Purchaser has intention to accept his/her bid and shall Inform via the Letter of Intention included in the Contract Forms and the information of name, address and amount of selected bidder shall be given to all other bidders who submitted the bid. 40.2 If no bidder submits an application pursuant to ITB 43.1 within a period of seven days of providing the notice under ITB 40.1 the Purchaser shall accept the bid selected in accordance with ITB 38.1 prior to the expiry of bid validity period, and notification of award shall be communicated to the bidder to furnish the performance security and sign the contract within fifteen days. 40.3 In Case, a corruption case is being filed to Court against the Natural Person or Board of Director of the firm/institution /company or any partner of JV, such Natural Person or Board of Director of the firm/institution /company or any partner of JV such bidder's bid shall be excluded from the evaluation, if public entity receives instruction from Government of Nepal.
41.Performance Security	41.1 Within fifteen (15) days of the receipt of notification of award from the Purchaser, the successful Bidder shall furnish the Performance Security in accordance with the GCC, using for that purpose the Performance Security Form included in Section VIII, Contract Forms, or another form acceptable to the Purchaser. i) If bid price of the bidder selected for acceptance is up to 15 (fifteen) percent less than the approved cost estimate, the performance security amount shall be 5 (five) percent of the bid price. ii) For the bid price of the bidder selected for acceptance is more than 15 (fifteen) percent below of the cost estimate, the performance security amount shall be determined as follows: Performance Security Amount = [(0.85 x Cost Estimate – Bid Price) x 0.5] + 5% of Bid Price.



	The Bid Price and Cost Estimate shall be exclusive of Value Added Tax.
	41.2 Failure of the successful Bidder to submit the above-mentioned Performance Security or sign the Contract Agreement shall constitute sufficient grounds for the annulment of the award and forfeiture of the Bid Security and black listing. In that event the Purchaser may award the Contract to the next lowest evaluated Bidder whose offer is substantially responsive and is determined by the Purchaser to be qualified to perform the Contract satisfactorily.
42. Signing of Contract	42.1 The successful Bidder shall sign the contract in the form included in section VIII after the submission of performance security in accordance with ITB 41. 42.2 At the same time, the Purchaser shall also notify all other Bidders of the results of the bidding, and shall publish in an English/Nepali language newspaper or well-known and freely accessible website the results identifying the bid and lot numbers and the following information: (i) name of each Bidder who submitted a Bid; (ii) bid prices as read out at Bid Opening; (iii) name and evaluated prices of each Bid; (iv) name of bidders whose bids were rejected and the reasons for their rejection; and (v) name of the winning Bidder, and the Price it offered, as well as the duration and summary scope of the Contract awarded.
43. Complaint and Review	43.1 If a Bidder dissatisfies with the Procurement proceedings or the decision made by the Purchaser in the intention to award the Contract, it may file an application to the Chief of the concerning Public Entity of the Purchaser within seven (7) days of having, receipt of such notice or decision making, for review of the proceedings stating the factual and legal grounds. 43.2 An application filed after the deadline pursuant ITB 43.1 shall not be processed. 43.3 The chief of Public Entity of the Purchaser shall, within five (5) days after receiving the application, give its decision with reasons, in writing pursuant to ITB 43.1: (a) whether to suspend the procurement proceeding and the procedure for further proceedings to be adopted; or (b) whether or not to reject a application. No application can be submitted before the Review Committee for review against the decision made by the chief of the Public Entity for the Bid amount up to the value as stated in BDS. 43.4 If the Bidder is not satisfied with the decision of the Public Entity in

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	accordance with ITB 43.3, or the decision by the Public Entity is not given within five (5) days of receipt of application pursuant to ITB 43.1, it can, within seven (7) days of receipt of such decision, file an application to the Review Committee of the GoN, stating the reason of its disagreement on the decision of the chief of Public Entity and furnishing the relevant documents, provided that its Bid amount is above the amount as stated in ITB 43.3. The application may be sent by hand, or by post, or by courier, or by electronic media at the risk of the Bidder itself. 43.5 Late application filed after the deadline pursuant to ITB 43.4 shall not be processed. 43.6 Within three (3) days of the receipt of application from the Bidder, pursuant to ITB 43.4, the Review Committee shall notify the concerning Public Entity of the Purchaser to furnish its procurement proceedings and comments on the issue, pursuant to ITB 43.3. 43.7 Within three (3) days of receipt of the notification pursuant to ITB 43.6, the Public Entity shall furnish the copy of the related documents along with its comment or reaction of complaint to the Review Committee. 43.8 The Review Committee, after inquiring from the Bidder and the Public Entity, if needed, shall give its decision within one (1) month after receiving the application filed by the Bidder, pursuant to ITB 43.4. 43.9 The Bidder, filing application pursuant to ITB 43.4, shall have to furnish a cash amount or Bank guarantee as stated in BDS with the validity period of at least ninety (90) days from the date of the filing of application pursuant to ITB 43.4. Application filed without furnishing the security deposit shall not be processed. 43.10 If the claim made by the Bidder pursuant to ITB 43.4 is justified, the Review Committee shall have to return the security deposit to the applicant, pursuant to ITB 43.9, within seven (7) days of such decision made. 43.11 If the claim made by the Bidder pursuant to ITB 43.4 is rejected by the Review Committee, the security deposit submitted by the Bidder pursuant to ITB 43.9 shall be forfeited.
44. Publication of contract award notice	44.1 Within three days of contract signing, the Public Entity shall publish a notice on the contract award with following information:in its notice board as well as shall manage to publish the notice on the notice board of District Coordination Committee, District Administration Office, Provincial Treasury and Controller Office and District



	Treasury and Controller Office., Such notice shall also be posted in its website and PPMO's website. a. name of the procurement, b. IFB number, c. date and name of newspaper published the IFB notice, d. name of the successful Bidder, and the contract price. 44.2 The Purchaser shall promptly respond in writing to any unsuccessful Bidder who, within thirty days from the date of publication of contract award notice in accordance with ITB 44.1, requests in writing the grounds on which its bid was not selected.
45.Provision of PPA and PPR	45.1 If any provision of this document are inconsistent with Public Procurement Act (PPA), 2063 or Public Procurement Regulations (PPR), 2064, the provision of this documents shall be void to the extent of such inconsistency and the provision of PPA and PPR shall prevail.



Section II. Bid Data Sheet

A. Introduction	
ITB 1.1	Name of the Purchaser: Khairahani Municipality office of Municipal executive
ITB 1.1	Name and Identification number of the Contracts: IFB No.: 015/MF/CHT-Kmun/SQ/Goods/2080-081
ITB 2.1	Source of Fund: [Select one option as appropriate. <i>GoN Funded/Municipality Funded</i> Name of the Project: Supply and Delivery of Necessary Stationery and Miscellaneous Items
ITB 4.1	Bidders from the following countries are eligible: Nepal
ITB 4.9	The foreign Bidder at the time of bid submission: ☐ shall submit NA ☐ shall declare to submit at the time of contract agreement NA
ITB 5.1	Goods and related services to be supplied from following countries are not eligible: Not Applicable
B. Bidding Document	
ITB 8.1	For clarification purposes only, the Purchaser's address is: Attention: <u>Bishnu Pd. Sapkota. CAO</u> Name of the Purchaser: KHAIRAHANI MUNICIPALITY OFFICE OF MUNICIPAL EXECUTIVE City/Town: Khairahani Municipality District: Chitwan Country: Nepal Telephone: 056-583709, 9841747318 Facsimile Number: Electronic Mail <u>Address:</u> info@khairahanimun.gov.np
ITB 8.1	The purchaser will respond in writing to any request for clarification

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	provided that such request is received no later than 10 days prior to the deadline date for submission of bid.
ITB 8.2	Pre-Bid meeting [<i>"shall not"</i>] be organized.
C. Preparation of Bids	
ITB 11.1	The language of the Bid is: Nepali or English
ITB 12.1 (h)	The Bidder shall submit the following additional documents with its Bid: NA
ITB 14.1	Alternative Bids are not permitted
ITB 15.3	The prices quoted by the Bidder shall : NOT ADJUSTABLE
ITB 17.1 (c)	The Bidders shall submit: ☐ Copy of Firm Registration Certificate ☐ Copy of Business Registration Certificate (if required) ☐ Copy of VAT and PAN Registration Certificate, ☐ Tax Clearance Certificate/Tax return submission evidence/evidence of time extension for the F/Y 2079/080 or extension certificate.
ITB 19.2	[Select one among the following options]: A Manufacturer's Authorization letter is not required.
ITB 19.3	The Bidder_____ [<i>"is" or "is not"</i>]_____ required to include with its bid, evidence that it will be represented by an Agent in Nepal.
ITB 20.1	The bid validity period shall be 120 days.
ITB 21.1	The bid must be accompanied by bid security, amounting to a minimum of NRs 94,000.00 , which shall be valid for minimum 30 days beyond the bid validity period.
ITB 21.2	If the Bidder wishes to submit the Bid Security in the form of cash, the cash should be deposited in Deposit Account No.: 0509101154064043 (Dharauti Khata) at Agriculture Development Bank Parsa Khairahani Branch and submit the receipt of the deposited amount of cash along with the bid.
ITB 22.1	The written confirmation of Authorization to sign on behalf of the Bidder shall consist of: Power of Attorney to sign the bid

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D. Submission and Opening of Bids

ITB 23.1	Bidders shall have the option of submitting their bids by electronic only .
ITB 23.1	If the bidders shall have electronically option them insert a description of the electronic bidding submission procedure otherwise delete the procedure. (a) If bidders submit their bids electronically, the electronic bidding submission procedures shall be: Bidders submitting Bids electronically shall follow the electronic bid submission procedure specified in this clause. i. The bidder is required to register in the e-GP system https://www.bolpatra.gov.np/egp following the procedure specified in e-GP guideline. ii. Interested bidders may either purchase the bidding document from the Purchaser 's office as specified in the Invitation for Bid (IFB) or bidders may download the IFB and bidding document from e-GP system. iii. The registered bidders need to maintain their profile data required during preparation of bids. iv. In order to submit their bids the cost of the bidding document can be deposited as specified in IFB. In addition, electronic scanned copy (.pdf format) of the bank deposit voucher/cash receipt should also be submitted along with the technical bid. v. The bidder can prepare their bids using data and documents maintained in bidder's profile and forms/format provided in bidding document by Purchaser. The bidder may submit bids as a single entity or as a joint venture. The bidder submitting bid in joint venture shall have to upload joint venture agreement along with partner(s) Bolpatra ID provided during bidder's registration. vi. Bidders (all partners in case of JV) should update their profile data and documents required during preparation and submission of their technical bids. vii. In case of bid submission in JV, the consent of the partners shall be obtained through the confirmation link sent to the registered email address and the partners shall have to acknowledge their confirmation

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The required forms and documents shall be part of bids.

No.	Document	Requirement	Remarks
1.	Letter of Bid	Mandatory	PDF
2.	Bid Security	Mandatory	PDF
3.	Company registration	Mandatory	PDF
4.	VAT registration	Mandatory for domestic bidders	PDF
5.	Business Registration Certificate	Mandatory	PDF
6.	Tax clearances certificate of F/Y 2079-2080 with Time Extension	Mandatory for domestic bidders	PDF
7.	Power of Attorney of Bid signatory		PDF
8.	Bank Voucher for cost of bid document	Mandatory	PDF
9.	Joint venture agreement		PDF
10.	Completed Price Schedule		PDF or Web Forms
11.	Qualification Documents		PDF
12.	Technical specifications		PDF or Web Forms
13.	Delivery and Completion Schedule		PDF or Web Forms
14.	Additional Documents specified in ITB 12.1 (h)	If applicable	PDF



- viii. For verifying the authentic user, the system will send one time password (OTP) in the registered e-mail address of the bidder. System will validate the OTP and allow bidder to submit their bid.
- ix. Electronically submitted bids can be modified and/or withdrawn through system. The bidder may modify their bids multiple times online within bid submission date and time specified in e-GP system. Once a Bid is withdrawn, bidder won't be able to submit another bid response for the same bid.
- x. The Bidder / Bid shall meet the following requirements and conditions for e-submission of bids;
 - aa) The e-submitted bids must be readable through PDF reader.
 - bb) The facility for submission of bid electronically through e-submission is to promote transparency, non-discrimination, equality of access, and open competition in the bidding process. The Bidders are fully responsible to use the e- submission facility properly in e-GP system as per specified procedures and in no case the Purchaser shall be held liable for Bidder's inability to use this facility.
 - cc) When a bidder submits electronic bid through the PPMO e-GP portal, it is assumed that the bidder has prepared the bid by studying and examining the complete set of the Bidding documents including specifications, drawings and conditions of contract

 Khairahani Municipality Office of Municipal Executive Khairahani, Chitwan 3 No. Province, Nepal 2017 A.D.	 15/MF/CHT-Kmun/SQ/Good/2080-2081
ITB 24.1	The deadline for bid submission is: Date: As per Notice Time: 12.00
ITB 24.1	If the last date of purchasing, submission and opening of Bid falls on a government holiday then the next working day shall be considered as the last day without any change in the time and place as fixed.
ITB 27.1	The bid opening shall take place at: Khairahani Municipality, Office Of Municipal Executive, Khairahani, Chitwan Date: As per Notice Time: 2 pm Place: : Khairahani, Chitwan
ITB 27.1	If electronic bid submission is permitted in accordance with ITB 23.1, the specific bid opening procedures shall be: The e-procurement system allows the Purchaser to download the e- submitted bid files (report) only after bid opening date and time after login simultaneously by two members of the Bid opening committee.
E. Evaluation and Comparison of Bids	
F. Award of Contract	

Section II. Evaluation and Qualification Criteria

Evaluation Criteria

Criteria for Bid evaluation are to be determined case by case basis. Select as appropriate from criteria listed in ITB 35.2. Retain only the evaluation method to apply and the relevant parameters in ITB 35.2 corresponding to the retained criteria.

a) Delivery schedule : Relevant parameters of delivery :

(i) All items should be delivered within 3 months of agreement.

No credit will be given to deliveries before the earliest date, and bids offering delivery after the final date shall be treated as non responsive. Within this acceptable period, an adjustment of 0.05 percent of the bid price per day will be added, for evaluation purposes only, to the bid price of bids offering deliveries later than the “Earliest Delivery Date”

Section IV. Bidding Forms

Table of Forms

- 1. Bid Submission Form**
- 2. Bidder's Information Form**
- 3. Joint Venture Information Form**
- 4. Financial Situation Form**
- 5. Average Annual Turnover Form**
- 6. Financial Resources Form**
- 7. Price Schedule For Goods**
- 8. Bid Security**



1. Bid Submission Form

(The Bidder shall accomplish the Bid Submission Form in its Letter Head Clearly showing the Bidders Complete name and address)

Date: _____

Contract No.: _____

Invitation for Bid No.: _____

To: _____

We, the undersigned, declare that:

- (a) We have examined and have no reservations to the Bidding Document, including Addenda No.: _____;
- (b) We offer to supply in conformity with the Bidding Document and in accordance with the delivery schedule specified in the Schedule of Requirements, the following Goods and Related Services: _____;
- (c) The total price of our Bid, excluding any discounts offered in item (d) below is: _____;
- (d) The discounts offered and the methodology for their application are: _____

_____;
- (e) Our Bid shall be valid for a period of [**Insert 90 or 120**] days from the date fixed for the bid submission deadline in accordance with the Bidding Document, and it shall remain binding upon us and may be accepted at any time before the expiration of that period;
- (f) If our Bid is accepted, we commit to obtain a Performance Security in the amount as specified in ITB 41 for the due performance of the Contract;
- (g) We are not participating, as Bidders, in more than one Bid in this bidding process, other than alternative offers in accordance with the Bidding Document;
- (h) The following commissions, gratuities, or fees, if any, have been paid or are to be paid with respect to the bidding process or execution of the Contract:



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Name of Recipient	Address	Reason	Amount
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(If none has been paid or is to be paid, indicate “none.”)

- (i) We understand that this Bid, together with your written acceptance thereof included in your notification of award, shall constitute a binding contract between us, until a formal Contract is prepared and executed.
- (j) We understand that you are not bound to accept the lowest evaluated bid or any other bid that you may receive.
- (k) We declare that, we have not been black listed as per ITB 3.4 and no conflict of interest in the proposed procurement proceedings and we have not been punished for an offense relating to the concerned profession or business.
- (l) We agree to permit GoN/DP or its representative to inspect our accounts and records and other documents relating to the bid submission and to have them audited by auditors appointed by the GoN/DP.

Name _____

In the capacity of _____

Signed _____

Duly authorized to sign the Bid for and on behalf of _____

Date _____



2. Bidder's Information Form

[The Bidder shall fill in this Form. No alterations to its format shall be permitted and no substitutions shall be accepted. In case of joint venture, each partner shall fill the information in separate form.]

Date.....[insert date (as day, month and year) of Bid Submission]

Page_____of_____pages

1.	Bidder's Legal Name	
2	Bidder's Address:	
3	Bidder's Country of Registration:	
4.	Bidder's Year of Registration:	
5.	Bidder's Legal Address in Country of Registration	
6.	Bidder's Authorized Representative Information: Name: Address: Telephone/Fax numbers: Email Address	
7	Bidder's Telephone/Fax numbers:	
8	Bidder's Email Address:	
All company related documents (Company Registration, PAN , VAT, Tax clearance for FY 2077/078 are attached herby.(place in order) , Business and DDA certificate		



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3. Joint Venture Information Form

Lead Partner	Name of the Lead Partner in Joint Venture: Place of Firm Registration: Place of Business Registration: Percentage of Partnership:	
Partner	Name of the Partner in Joint Venture: Place of Firm Registration: Place of Business Registration: Percentage of Partnership:	
Partner	Name of the Partner in Joint Venture: Place of Firm Registration: Place of Business Registration: Percentage of Partnership:	
	Name of the partner authorized to sign the Bid:	



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Price Schedule For Goods

Name of Bidder invitation for Bid No.:

Plz notify:-

[If there are more than one lot/slice/package, prepare Price Schedule form for each lot/slice/package]

Name _____

In the capacity of _____

Signed _____

Duly authorized to sign the Bid for and on behalf of _____

Date _____



Bid Security

[This is the format for the Bid Security to be issued on the letterhead by a Commercial Bank or Financial Institution eligible to issue Bank Guarantee as per prevailing Law specified by Nepal Rastra Bank]

[insert Bank's Name, and Address of Issuing Branch or Office]

Date: *[insert date]*

Beneficiary: *[insert Name and Address of Purchaser]*

BID GUARANTEE No.: *[insert number]*

We have been informed that *[insert name of the Bidder]* (hereinafter called "the Bidder") intends to submit its bid to you (hereinafter called "the Bid") for the execution of *[insert name of contract]* under Invitation for Bids No. *[insert IFB number]* ("the IFB").

Furthermore, we understand that, according to your conditions, bids must be supported by a bid guarantee.

At the request of the Bidder, we *[insert name of Bank]* hereby irrevocably undertake to pay you any sum or sums not exceeding in total an amount of *[insert amount in figures]**[insert amount in words]* upon receipt by us of your first demand in writing accompanied by a written statement stating that the Bidder is in breach of its obligation(s) under the bid conditions, because the Bidder:

- (a) has withdrawn or modifies its Bid:
 - i) during the period of bid validity specified by the Bidder on the Letter of Bid, in case of electronic submission
 - (ii) from the period twenty-four hours prior to bid submission deadline up to the period of bid validity specified by the Bidder on the Letter of Bid, in case of hard copy submission; or
- (b) does not accept the correction of errors in accordance with the Instructions to Bidders (hereinafter "the ITB"); or
- (c) changes the prices or substance of the bid while providing information pursuant to clause 29.1 of ITB; or
- (d) having been notified of the acceptance of its Bid by the Purchaser during the period of bid validity, (i) fails or refuses to execute the Contract Agreement, or (ii) fails or refuses to furnish the performance security, in accordance with the ITB.
- (e) is involved in fraud and corruption in accordance with the ITB.

This guarantee will expire: (a) if the Bidder is the successful Bidder, upon our receipt of copies of the contract signed by the Bidder and the performance security issued to you upon the instruction of the Bidder; and (b) if the Bidder is not the successful Bidder, upon the earlier of (i) our receipt of a copy of your notification to the Bidder of the name of the successful Bidder; or (ii) thirty (30) days



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after the expiration of the Bidder's bid which comes to be **[insert the date].**

Consequently, any demand for payment under this guarantee must be received by us at the office on or before that date.

Name _____

In the capacity of _____

Signed _____

Duly authorized to sign the Bid Security for and on behalf of _____

Date _____



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Section V. Schedule of Requirements

Contents

1. *Delivery and Completion Schedule*
2. *Technical Specifications*



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Delivery and Completion Schedule

Delivery shall take place in compliance with the dates, duration, and locations indicated below:

- 1. Delivery Place:- Khairahani Municipality, Office of Municipal Executive. Khairahani-06, Chitwan, Bagmati Provincence, Nepal.**



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3. Technical Specifications

The purpose of the Technical Specifications (TS) is to define the technical characteristics of the Goods and Related Services required by the Purchaser. The TS, as a part of the schedule of Requirements (SR), constitute a Contract document and are, therefore, a part of the Contract.

The Purchaser must prepare the TS and include them as a part of the Procurement Document, as applicable to each Contract.



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15/MF/CHT-Kmun/SQ/Goods/2080-2081

BILL OF QUANTITY (BOQ)

Name : -

Signed : -

Duly authorized to sign the Bid for and on behalf of.....

Date:

Stamp: -

Section VI. General Conditions of Contract

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Section VI. General Conditions of Contract

1. Definitions

1.1. The following words and expressions shall have the meanings hereby assigned to them:

- (a) “Contract” means the Agreement entered into between the Purchaser and the Supplier, together with the Contract Documents referred to therein, including all attachments, appendices, and all documents incorporated by reference therein.
- (b) “Contract Documents” means the documents listed in the Agreement, including any amendments thereto.
- (c) “Contract Price” means the price payable to the Supplier as specified in the Agreement, subject to such additions and adjustments thereto or deductions there from, as may be made pursuant to the Contract.
- (d) “Day” means calendar day.
- (e) “Delivery” means the transfer of the Goods from the Supplier to the Purchaser in accordance with the terms and conditions set forth in the Contract.
- (f) “Completion” means the fulfillment of the Related Services by the Supplier in accordance with the terms and conditions set forth in the Contract.
- (g) “GCC” means the General Conditions of Contract.
- (h) “Goods” means all of the commodities, raw material, machinery and equipment, and/or other materials that the Supplier is required to supply to the Purchaser under the Contract.
- (i) “Purchaser’s Country” is the country specified in the Special Conditions of Contract (SCC).
- (j) “Purchaser” means the entity purchasing the Goods and Related Services, as specified in the SCC.
- (k) “Related Services” means the services incidental to the supply of the goods, such as insurance, installation, training and initial maintenance and other similar obligations of the Supplier under the Contract.
- (l) “SCC” means the Special Conditions of Contract.

- (m) “Subcontractor” means any natural person, private or government entity, or a combination of the above, including its legal successors or permitted assigns, to whom any part of the Goods to be supplied or execution of any part of the Related Services is subcontracted by the Supplier.
- (n) “Supplier” means the natural person, private or government entity, or a combination of the above, whose bid to perform the Contract has been accepted by the Purchaser and is named as such in the Agreement, and includes the legal successors or permitted assigns of the Supplier.
- (o) “GoN” means the Government of Nepal.
- (p) “The Site,” where applicable, means the place named in the SCC.

2. *Contract Documents*

2.3 Subject to the order of precedence set forth in the Agreement, all documents forming the Contract (and all parts thereof) are intended to be correlative, complementary, and mutually explanatory.

3. *Fraud and Corruption*

3.1 If the Purchaser determines that the Supplier has engaged in corrupt, fraudulent, collusive, coercive or obstructive practices, in competing for or in executing the Contract, then the Purchaser may, after giving 14 days notice to the Supplier, terminate the Supplier's employment under the Contract and the provisions of GCC Clause 34.1 shall apply.

For the purposes of this Sub-Clause:

- (i) “corrupt practice” is the offering, giving, receiving or soliciting, directly or indirectly, of anything of value to influence improperly the actions of another party;
- (ii) “fraudulent practice”³ is any act or omission, including a misrepresentation, that knowingly or recklessly misleads, or attempts to mislead, a party to obtain a financial or other benefit or to avoid an obligation;
- (iii) “collusive practice”⁴ is an arrangement between two or more parties designed to achieve an improper purpose, including to influence improperly the actions of another party;

³ a “party” refers to a public official; the terms “benefit” and “obligation” relate to the procurement process or contract execution; and the “act or omission” is intended to influence the procurement process or contract execution.

⁴ “parties” refers to participants in the procurement process (including public officials) attempting to establish bid prices at artificial, non competitive levels.



(iv) “coercive practice”⁵ is impairing or harming, or threatening to impair or harm, directly or indirectly, any party or the property of the party to influence improperly the actions of a party;

(v) “obstructive practice” is

(aa) deliberately destroying, falsifying, altering or concealing of evidence material to the investigation or making false statements to investigators in order to materially impede a GoN/DP investigation into allegations of a corrupt, fraudulent, coercive or collusive practice; and/or threatening, harassing or intimidating any party to prevent it from disclosing its knowledge of matters relevant to the investigation or from pursuing the investigation; or

(bb) acts intended to materially impede the exercise of the GoN/DP’s inspection and audit rights provided for under ITB Clause 3.5 and GCC Clause 25.

3.2 Without prejudice to any other rights of the Purchaser under this Contract, GoN may **blacklist** a Bidder/Supplier for its conduct for a period of one (1) to three (3) years on the following grounds and seriousness of the act committed by the bidder:

- (a) if it is established that the Supplier committed acts specified in ITB 3.2,
- (b) if it is established later that the Bidder has committed substantial defect in implementation of the contract or has not substantially fulfilled its obligations under the contract or the completed work is not of the specified quality as per the contract.

4. Interpretation

4.1 If the context so requires it, singular means plural and vice versa.

4.2 Entire Agreement

The Contract constitutes the entire agreement between the Purchaser and the Supplier and supersedes all communications, negotiations and agreements (whether written or oral) of parties with respect thereto made prior to the date of Contract.

4.3 Amendment

⁵ a “party” refers to a participant in the procurement process or contract execution.



No amendment or other variation of the Contract shall be valid unless it is in writing, is dated, expressly refers to the Contract, and is signed by a duly authorized representative of each party thereto.

4.4 Nonwaiver

- (a) Subject to GCC Sub-Clause 4.5(b) below, no relaxation, forbearance, delay, or indulgence by either party in enforcing any of the terms and conditions of the Contract or the granting of time by either party to the other shall prejudice, affect, or restrict the rights of that party under the Contract, neither shall any waiver by either party of any breach of Contract operate as waiver of any subsequent or continuing breach of Contract.
- (b) Any waiver of a party's rights, powers, or remedies under the Contract must be in writing, dated, and signed by an authorized representative of the party granting such waiver, and must specify the right and the extent to which it is being waived.

4.5 Severability

If any provision or condition of the Contract is prohibited or rendered invalid or unenforceable, such prohibition, invalidity or unenforceability shall not affect the validity or enforceability of any other provisions and conditions of the Contract.

5. Language

- 5.1 The Contract as well as all correspondence and documents relating to the Contract exchanged by the Supplier and the Purchaser, shall be written in the language specified in the SCC. Supporting documents and printed literature that are part of the Contract may be in another language provided they are accompanied by an accurate translation of the relevant passages in the language specified in the SCC, in which case, for purposes of interpretation of the Contract, this translation shall govern.
- 5.2 The Supplier shall bear all costs of translation to the governing language and all risks of the accuracy of such translation.

6. Joint Venture, Consortium or Association

- 6.1 If the Supplier is a joint venture, consortium, or association, all of the parties shall be jointly and severally liable to the Purchaser for the fulfillment of the provisions of the Contract and shall designate one party to act as a leader with authority to bind the joint venture, consortium, or association. A bidder can submit only one bid either as a



partner of the joint venture or individually. The composition or the constitution of the joint venture, consortium, or association shall not be altered without the prior consent of the Purchaser.

- 6.2 **The contractor shall not handover the responsibility of the contract to any one member or some members of Joint Venture or any other parties, not involved in the contract.**

7. Notices

- 7.1 Any Notice given by one party to the other pursuant to the Contract shall be in writing to the address specified in the SCC. The term “in writing” means communicated in written form with proof of receipt.
- 7.2 A Notice shall be effective when delivered or on the Notice’s effective date, whichever is later.

8. Governing Law

- 8.1 The Contract shall be governed by and interpreted in accordance with the laws of Nepal.

9. Settlement of Disputes

- 9.1 The Purchaser and the Supplier shall make every effort to settle amicably by direct negotiation any disagreement or dispute arising between them under or in connection with the Contract.
- 9.2 Any dispute between the Parties as to matters arising pursuant to this Contract which cannot be settled amicably within thirty (30) days after receipt by one Party of the other Party’s request for such amicable settlement may be referred to Arbitration within 30 days after the expiration of amicable settlement period as specified in SCC.

10. Scope of Supply

10.1 Subject to the SCC, the Goods and Related Services to be supplied shall be as specified in Section V, Schedule of Requirements.

- 10.2 Unless otherwise stipulated in the Contract, the Scope of Supply shall include all such items not specifically mentioned in the Contract but that can be reasonably inferred from the Contract as being required for attaining Delivery and Completion of the Goods and Related Services as if such items were expressly mentioned in the Contract.

11. Delivery

- 11.1 Subject to GCC Sub-Clause 31.1, the Delivery of the Goods and Completion of the Related Services shall be in accordance with the Delivery and Completion Schedule specified in the Section V, Schedule of Requirements. The details of documents to be furnished by the Supplier are specified in the SCC.

12. *Supplier's Responsibilities*

12.1 The Supplier shall supply all the Goods and Related Services included in the Scope of Supply in accordance with GCC Clause 10, and the Delivery and Completion Schedule, as per GCC Clause 11.

13. *Purchaser's Responsibilities*

13.1 Whenever the supply of Goods and Related Services requires that the Supplier obtain permits, approvals, and import and other licenses from public authorities in Nepal, the Purchaser shall, if so required by the Supplier, make its best effort to assist the Supplier in complying with such requirements in a timely and expeditious manner.

13.2 The Purchaser shall pay all costs involved in the performance of its responsibilities, in accordance with GCC Sub-Clause 13.1.

14. *Contract Price*

14.1 The Contract Price shall be as specified in the Agreement subject to any additions and adjustments thereto, or deductions there from, as may be made pursuant to the Contract.

14.2 Prices charged by the Supplier for the Goods delivered and the Related Services performed under the Contract shall not vary from the prices quoted by the Supplier in its bid, with the exception of any price adjustments authorized in the SCC.

15. *Terms of Payment*

15.1 The Contract Price shall be paid in Nepalese Currency.

15.2 The Supplier's request for payment shall be made to the Purchaser in writing, accompanied by invoices describing, as appropriate, the Goods delivered and Related Services performed, and by the documents submitted pursuant to GCC Clause 11 and upon fulfillment of all the obligations stipulated in the Contract.

15.3 Payments shall be made promptly by the Purchaser, no later than thirty (30) days after submission of an invoice or request for payment by the Supplier, and the Purchaser has accepted it.

16. *Taxes and Duties*

16.1 For goods supplied, the Supplier shall be entirely responsible for all taxes, duties, license fees, etc., incurred until delivery of the contracted Goods to the Purchaser

17. *Performance Security*

17.1 The Supplier shall, within fifteen (15) days of the receipt of notification of Contract award, provide a Performance Security for the due performance of the Contract in the amounts and currencies specified in the SCC.

17.2 The proceeds of the Performance Security shall be payable to the Purchaser as compensation for any loss resulting from the Supplier's failure to complete its obligations under the Contract.

17.3 The Performance Security shall be denominated in the currency of the Contract, or in a freely convertible currency acceptable to the Purchaser, and shall be in one of the forms stipulated by the Purchaser in the SCC, or in another form acceptable to the Purchaser.

17.4 The Performance Security shall be discharged by the Purchaser and returned to the Supplier not later than thirty (30) days following the date of completion of the Supplier's performance obligations under the Contract, including any warranty obligations, unless specified otherwise in the SCC.

18. Copyright

18.1 The copyright in all drawings, documents, and other materials containing data and information furnished to the Purchaser by the Supplier herein shall remain vested in the Supplier, or, if they are furnished to the Purchaser directly or through the Supplier by any third party, including suppliers of materials, the copyright in such materials shall remain vested in such third party.

19. Confidential Information

19.1 The Purchaser and the Supplier shall keep confidential and shall not, without the written consent of the other party hereto, divulge to any third party any documents, data, or other information furnished directly or indirectly by the other party hereto in connection with the Contract, whether such information has been furnished prior to, during or following completion or termination of the Contract. Notwithstanding the above, the Supplier may furnish to its Subcontractor such documents, data, and other information it receives from the Purchaser to the extent required for the Subcontractor to perform its work under the Contract, in which event the Supplier shall obtain from such Subcontractor an undertaking of confidentiality similar to that imposed on the Supplier under GCC Clause 19.

19.2 The Purchaser shall not use such documents, data, and other information received from the Supplier for any purposes unrelated to the Contract. Similarly, the Supplier shall not use such documents, data, and other information received from the Purchaser for any purpose other than the design, procurement, or other work and services required for the performance of the Contract.



19.3 The obligation of a party under GCC Sub-Clauses 19.1 and 19.2 above, however, shall not apply to information that:

- (a) the Purchaser or Supplier need to share with the Donor for Donor funded project or other institutions participating in the financing of the Contract;
- (b) now or hereafter enters the public domain through no fault of that party;
- (c) can be proven to have been possessed by that party at the time of disclosure and which was not previously obtained, directly or indirectly, from the other party; or
- (d) otherwise lawfully becomes available to that party from a third party that has no obligation of confidentiality.

19.4 The above provisions of GCC Clause 19 shall not in any way modify any undertaking of confidentiality given by either of the parties hereto prior to the date of the Contract in respect of the Supply or any part thereof.

19.5 The provisions of GCC Clause 19 shall survive completion or termination, for whatever reason, of the Contract.

20. Subcontracting

20.1 The Supplier shall notify the Purchaser in writing of all subcontracts awarded under the Contract if not already specified in the Bid. Subcontracting shall in no event relieve the Supplier from any of its obligations, duties, responsibilities, or liability under the Contract.

20.2 Subcontracts shall comply with the provisions of GCC Clauses 3.

21. Specifications and Standards

21.1 Technical Specifications and Drawings

- (a) The Supplier shall ensure that the Goods and Related Services comply with the technical specifications and other provisions of the Contract.
- (b) The Supplier shall be entitled to disclaim responsibility for any design, data, drawing, specification or other document, or any modification thereof provided or designed by or on behalf of the Purchaser, by giving a notice of such disclaimer to the Purchaser.
- (c) The Goods and Related Services supplied under this Contract shall conform to the standards mentioned in

Section V, Schedule of Requirements and, when no applicable standard is mentioned, the standard shall be equivalent or superior to the official standards whose application is appropriate to the country of origin of the Goods.

- 21.2 Wherever references are made in the Contract to codes and standards in accordance with which it shall be executed, the edition or the revised version of such codes and standards shall be those specified in the Section V, Schedule of Requirements Requirements. During Contract execution, any changes in any such codes and standards shall be applied only after approval by the Purchaser and shall be treated in accordance with GCC Clause 32.
- 22. Packing and Documents**
- 22.1 The Supplier shall provide such packing of the Goods as is required to prevent their damage or deterioration during transit to their final destination, as indicated in the Contract. During transit, the packing shall be sufficient to withstand, without limitation, rough handling and exposure to extreme temperatures, salt and precipitation, and open storage. Packing case size and weights shall take into consideration, where appropriate, the remoteness of the final destination of the Goods and the absence of heavy handling facilities at all points in transit.
- 22.2 The packing, marking, and documentation within and outside the packages shall comply strictly with such special requirements as shall be expressly provided for in the Contract, including additional requirements, if any, specified in the SCC, and in any other instructions ordered by the Purchaser.
- 23. Insurance**
- 23.1 Unless otherwise specified in the SCC, the Goods supplied under the Contract shall be fully insured, in a freely convertible currency against loss or damage incidental to manufacture or acquisition, transportation, storage, and delivery, in the manner specified in the SCC.
- 24. Transportation**
- 24.1 Unless otherwise specified in the SCC, obligations for transportation of the Goods shall be in accordance with the Incoterms specified in Sections V, Schedule of Requirements.
- 25. Inspections and Tests**
- 25.1 The Supplier shall at its own expense and at no cost to the Purchaser carry out all such tests and/or inspections of the Goods and Related Services as are specified in Sections V, Schedule of Requirements.
- 25.2 The inspections and tests may be conducted on the premises of the Supplier or its Subcontractor, at point of delivery,



and/or at the final destination of the Goods, or in another place in Nepal as specified in the SCC. Subject to GCC Sub-Clause 25.3, if conducted on the premises of the Supplier or its Subcontractor, all reasonable facilities and assistance, including access to drawings and production data, shall be furnished to the inspectors at no charge to the Purchaser.

25.3 The Purchaser or its designated representative shall be entitled to attend the tests and/or inspections referred to in GCC Sub-Clause 25.2, provided that the Purchaser bear all of its own costs and expenses incurred in connection with such attendance including, but not limited to, all traveling and board and lodging expenses.

25.4 Whenever the Supplier is ready to carry out any such test and inspection, it shall give a reasonable advance notice, including the place and time, to the Purchaser. The Supplier shall obtain from any relevant third party or manufacturer any necessary permission or consent to enable the Purchaser or its designated representative to attend the test and/or inspection.

25.5 The Purchaser may require the Supplier to carry out any test and/or inspection not required by the Contract but deemed necessary to verify that the characteristics and performance of the Goods comply with the technical specifications, codes and standards under the Contract, provided that the Supplier's reasonable costs and expenses incurred in the carrying out of such test and/or inspection shall be added to the Contract Price. Further, if such test and/or inspection impede the progress of manufacturing and/or the Supplier's performance of its other obligations under the Contract, due allowance will be made in respect of the Delivery Dates and Completion Dates and the other obligations so affected.

25.6 The Supplier shall provide the Purchaser with a report of the results of any such test and/or inspection.

25.7 The Purchaser may reject any Goods or any part thereof that fail to pass any test and/or inspection or do not conform to the specifications. The Supplier shall either rectify or replace such rejected Goods or parts thereof or make alterations necessary to meet the specifications at no cost to the Purchaser, and shall repeat the test and/or inspection, at no cost to the Purchaser, upon giving a notice pursuant to GCC Sub-Clause 25.4.

25.8 The Supplier agrees that neither the execution of a test and/or inspection of the Goods or any part thereof, nor the



attendance by the Purchaser or its representative, nor the issue of any report pursuant to GCC Sub-Clause 25.6, shall release the Supplier from any warranties or other obligations under the Contract.

**26. Liquidated
Damages**

26.1 Except as provided under GCC Clause 31, if the Supplier fails to deliver any or all of the Goods or perform the Related Services within the period specified in the Contract, the Purchaser may without prejudice to all its other remedies under the Contract, deduct from the Contract Price, as liquidated damages, a sum equivalent to the percentage specified in the SCC of the Contract Price for each week or part thereof of delay until actual delivery or performance, up to a maximum deduction of the percentage specified in the SCC. Once the maximum is reached, the Purchaser may terminate the Contract pursuant to GCC Clause 34.

27. Warranty

27.1 The Supplier warrants that all the Goods are new, unused, and of the most recent or current models, and that they incorporate all recent improvements in design and materials, unless provided otherwise in the Contract.

27.2 Subject to GCC Sub-Clause 21.1, the Supplier further warrants that the Goods shall be free from defects arising from any act or omission of the Supplier or arising from design, materials, and workmanship, under normal use in the conditions prevailing in Nepal.

27.3 Unless otherwise specified in the SCC, the warranty shall remain valid for twelve (12) months after the Goods, or any portion thereof as the case may be, have been delivered to and accepted at the final destination indicated in the SCC.

27.4 The Purchaser shall give Notice to the Supplier stating the nature of any such defects together with all available evidence thereof, promptly following the discovery thereof. The Purchaser shall afford all reasonable opportunity for the Supplier to inspect such defects.

27.5 Upon receipt of such Notice, the Supplier shall, within the period specified in the SCC, expeditiously repair or replace the defective Goods or parts thereof, at no cost to the Purchaser.

27.6 If having been notified, the Supplier fails to remedy the defect within the period specified in the SCC, the Purchaser may proceed to take within a reasonable period such remedial action as may be necessary, at the Supplier's risk



and expense and without prejudice to any other rights which the Purchaser may have against the Supplier under the Contract.

28. Patent Indemnity

28.1 The Supplier shall, subject to the Purchaser's compliance with GCC Sub-Clause 28.2, indemnify and hold harmless the Purchaser and its employees and officers from and against any and all suits, actions or administrative proceedings, claims, demands, losses, damages, costs, and expenses of any nature, including attorney's fees and expenses, which the Purchaser may suffer as a result of any infringement or alleged infringement of any patent, utility model, registered design, trademark, copyright, or other intellectual property right registered or otherwise existing at the date of the Contract by reason of:

- (a) the installation of the Goods by the Supplier or the use of the Goods in the country where the Site is located; and
- (b) the sale in any country of the products produced by the Goods.

Such indemnity shall not cover any use of the Goods or any part thereof other than for the purpose indicated by or to be reasonably inferred from the Contract, neither any infringement resulting from the use of the Goods or any part thereof, or any products produced thereby in association or combination with any other equipment, plant, or materials not supplied by the Supplier, pursuant to the Contract.

28.2 If any proceedings are brought or any claim is made against the Purchaser arising out of the matters referred to in GCC Sub-Clause 28.1, the Purchaser shall promptly give the Supplier a notice thereof, and the Supplier may at its own expense and in the Purchaser's name conduct such proceedings or claim and any negotiations for the settlement of any such proceedings or claim.

28.3 If the Supplier fails to notify the Purchaser within thirty (30) days after receipt of such notice that it intends to conduct any such proceedings or claim, then the Purchaser shall be free to conduct the same on its own behalf.

28.4 The Purchaser shall, at the Supplier's request, afford all available assistance to the Supplier in conducting such



proceedings or claim, and shall be reimbursed by the Supplier for all reasonable expenses incurred in so doing.

28.5 The Purchaser shall indemnify and hold harmless the Supplier and its employees, officers, and Subcontractors from and against any and all suits, actions or administrative proceedings, claims, demands, losses, damages, costs, and expenses of any nature, including attorney's fees and expenses, which the Supplier may suffer as a result of any infringement or alleged infringement of any patent, utility model, registered design, trademark, copyright, or other intellectual property right registered or otherwise existing at the date of the Contract arising out of or in connection with any design, data, drawing, specification, or other documents or materials provided or designed by or on behalf of the Purchaser.

29. *Limitation of Liability*

29.1 Except in cases of gross negligence or willful misconduct :

- (a) neither party shall be liable to the other party for any indirect or consequential loss or damage, loss of use, loss of production, or loss of profits or interest costs, provided that this exclusion shall not apply to any obligation of the Supplier to pay liquidated damages to the Purchaser; and
- (b) the aggregate liability of the Supplier to the Purchaser, whether under the Contract, in tort, or otherwise, shall not exceed the total Contract Price, provided that this limitation shall not apply to the cost of repairing or replacing defective equipment, or to any obligation of the Supplier to indemnify the Purchaser with respect to patent infringement.

30. *Change in Laws and Regulations*

30.1 Unless otherwise specified in the Contract, if after the date of the Invitation for Bids, any law, regulation, ordinance, order or bylaw having the force of law is enacted, promulgated, abrogated, or changed in Nepal where the Site is located (which shall be deemed to include any change in interpretation or application by the competent authorities) that subsequently affects the Delivery Date and/or the Contract Price, then such Delivery Date and/or Contract Price shall be correspondingly increased or decreased, to the extent that the Supplier has thereby been affected in the performance of any of its obligations under the Contract. Notwithstanding the foregoing, such additional or reduced cost shall not be separately paid or credited if the same has already been accounted for in the price adjustment provisions where

applicable, in accordance with GCC Clause 14.

31. Force Majeure

31.1 The Supplier shall not be liable for forfeiture of its Performance Security, liquidated damages, or termination for default if and to the extent that its delay in performance or other failure to perform its obligations under the Contract is the result of an event of Force Majeure.

31.2 For purposes of this Clause, “Force Majeure” means an event or situation beyond the control of the Supplier that is not foreseeable, is unavoidable, and its origin is not due to negligence or lack of care on the part of the Supplier. Such events may include, but not be limited to, acts of the Purchaser in its sovereign capacity, wars or revolutions, fires, floods, epidemics, quarantine restrictions, and freight embargoes.

31.3 If a Force Majeure situation arises, the Supplier shall promptly notify the Purchaser in writing of such condition and the cause thereof. Unless otherwise directed by the Purchaser in writing, the Supplier shall continue to perform its obligations under the Contract as far as is reasonably practical, and shall seek all reasonable alternative means for performance not prevented by the Force Majeure event.

32. Change Orders and Contract Amendments

32.1 The Purchaser may at any time order the Supplier through Notice in accordance GCC Clause 7, to make changes within the general scope of the Contract in any one or more of the following:

- (a) drawings, designs, or specifications, where Goods to be furnished under the Contract are to be specifically manufactured for the Purchaser;
- (b) the method of shipment or packing;
- (c) the place of delivery; and
- (d) the Related Services to be provided by the Supplier.

32.2 If any such change causes an increase or decrease in the cost of, or the time required for, the Supplier’s performance of any provisions under the Contract, an equitable adjustment shall be made in the Contract Price or in the Delivery and Completion Schedule, or both, and the Contract shall accordingly be amended. Any claims by the Supplier for adjustment under this Clause must be asserted within thirty (30) days from the date of the Supplier’s receipt of the



Purchaser's change order.

32.3 Prices to be charged by the Supplier for any Related Services that might be needed but which were not included in the Contract shall be agreed upon in advance by the parties and shall not exceed the prevailing rates charged to other parties by the Supplier for similar services.

33. Extensions of Time

33.1 If at any time during performance of the Contract, the Supplier or its Subcontractors should encounter conditions impeding timely delivery of the Goods or completion of Related Services pursuant to GCC Clause 11, the Supplier shall promptly, and **at least twenty one (21) days** before the expiry of procurement contract, notify the Purchaser in writing of the delay, its likely duration, and its cause. As soon as practicable after receipt of the Supplier's notice, the Purchaser shall evaluate the situation and may at its discretion extend the Supplier's time for performance, in which case the extension shall be ratified by the parties by amendment of the Contract.

33.2 Except in case of Force Majeure, as provided under GCC Clause 31, a delay by the Supplier in the performance of its Delivery and Completion obligations shall render the Supplier liable to the imposition of liquidated damages pursuant to GCC Clause 26, unless an extension of time is agreed upon, pursuant to GCC Sub-Clause 34.1.

34. Termination

34.1 Termination for Default

- (a) The Purchaser, without prejudice to any other remedy for breach of Contract, by Notice of default sent to the Supplier, may terminate the Contract in whole or in part:
 - (i) if the Supplier fails to deliver any or all of the Goods within the period specified in the Contract, or within any extension thereof granted by the Purchaser pursuant to GCC Clause 33; or
 - (ii) if the Supplier fails to perform any other obligation under the Contract.
 - (iii) The supplier uses the advance payment for matters other than the contractual obligations.
 - (iv) The purchaser may terminate the contract at any time in the following condition incase contract is terminated. Supplier shall obliged to pay whole amount of remaining work or supply or fulfill the



any Supplier obligation.

- (a) does not commence the work as per the contract,
 - (b) abandons the contract without completing,
 - (c) fails to achieve progress as per the contract.
- (b) In the event the Purchaser terminates the Contract in whole or in part, pursuant to GCC Clause 34.1(a), the Purchaser may procure, upon such terms and in such manner as it deems appropriate, Goods or Related Services similar to those undelivered or not performed, and the Supplier shall be liable to the Purchaser for any additional costs for such similar Goods or Related Services. However, the Supplier shall continue performance of the Contract to the extent not terminated.
- (c) if the Supplier, in the judgment of the Purchaser has engaged in corrupt, fraudulent, collusive, coercive or obstructive practices, as defined in GCC Clause 3, in competing for or in executing the Contract.

34.2 Termination for Insolvency

The Purchaser may at any time terminate the Contract by giving Notice to the Supplier if the Supplier becomes bankrupt or otherwise insolvent. In such event, termination will be without compensation to the Supplier, provided that such termination will not prejudice or affect any right of action or remedy that has accrued or will accrue thereafter to the Purchaser.

34.3 Termination for Convenience

- (a) The Purchaser, by written Notice sent to the Supplier, may terminate the Contract, in whole or in part, at any time for its convenience. The Notice of termination shall specify that termination is for the Purchaser's convenience, the extent to which performance of the Supplier under the Contract is terminated, and the date upon which such termination becomes effective.
- (b) The Goods that are complete and ready for shipment within seven (7) days after the Supplier's receipt of the Notice of termination shall be accepted by the Purchaser at the Contract terms and prices. For the remaining Goods, the Purchaser may elect:



- (i) To have any portion completed and delivered at the Contract terms and prices; and/or
- (ii) To cancel the remainder and pay to the Supplier an agreed amount for partially completed Goods and Related Services and for materials and parts previously procured by the Supplier.

35. Assignment

35.1 Neither the Purchaser nor the Supplier shall assign, in whole or in part, their obligations under this Contract, except with prior written consent of the other party.

Section VII.Special Conditions of Contract

The following Special Conditions of Contract (SCC) shall supplement the General Conditions of Contract (GCC). Whenever there is a conflict, the provisions herein shall prevail over those in the GCC.

GCC 1.1(i)	The Purchaser's country is: Nepal
GCC 1.1(j)	The Purchaser is: Khairahani Municipality,Office of Municipal Executive,Chitwan
GCC 1.1 (p)	The Site isKhairahani Municipality
GCC 5.1	The language shall be: <u>Nepali or English</u>
GCC 7.1	For <u>notices</u>, the Purchaser's address shall be: Khairahani Municipality,Office of Municipal Executive,Chitwan Name and Address of the Purchaser: Khairahani Municipality,Office of Municipal Executive,Chitwan Telephone number:056-583709 Facsimile number:Er. Suman Shrestha e-mail Address: info@khairahanimun.gov.np
	For <u>notices</u>, the Suppliers's address shall be: <u>insert full name and address of Suppliers including telephone number, facsimile number and electronic mail address (if applicable)</u> Name and Address of the Supplier: Telephone number: Facsimile number: e-mail Address:
GCC 9.2	In case of arbitration, the arbitration shall be conducted in accordance with the arbitration procedures published by the Nepal Council of Arbitration (NEPCA)
GCC 10.1	The Scope of Supply shall be defined in: [<i>insert "Section V, Schedule of Requirements" or indicate where the Scope of Supply shall be defined. At the time of awarding the Contract, the Purchaser shall specify any change in the Scope of Supply with respect to Section V, Schedule of Requirements included in the Bidding Document. Such changes may be due, for instance, if the quantities of Goods and Related Services are increased or decreased at the time of award.</i>]



GCC 11.1	Upon delivery of the Goods to the transporter, the Supplier shall notify the Purchaser and send the following documents to the Purchaser: - Copies of the Supplier's invoice showing the description of the Goods, quantity, unit price, and total amount; - Copy of packing list identifying the contents of each package; - Delivery note, railway receipt, or truck receipt; - Manufacturer's or Supplier's warranty certificate; - Certificate of origin; and - Inspection certificate issued by the nominated inspection agency, and the Supplier's factory inspection report; The Purchaser shall receive the above documents before the arrival of the Goods and, if not received, the Supplier will be responsible for any consequent expenses. [Note: The above requirements should be reviewed on a case-by-case basis, with amendments being made as necessary]
GCC 14.2	The prices charged for the Goods delivered and the Related Services to be performed shall be fixed for the duration of the contract. or The prices charged for the Goods delivered and Related Services to be performed shall be subject to adjustment during performance of the Contract to reflect changes in the cost of labor and material components in accordance with the formula:
GCC 15.1	The terms of payment to be made to the Supplier under the contract shall be as follows: - The payment shall be made: - through an irrevocable confirmed letter of credit opened in favor of the Supplier or - through accounts division/unit of the Purchaser or - Through the District Treasury Controller Office. [Delete those not appropriate]
GCC 15.1	- Payments shall be made in Nepalese Rupees in the following manner: Sample provisions: - Advance Payment: N/A - On Delivery and acceptance: Hundred (100)] percent. of the

[Handwritten signature]

	Contract Price of the Goods delivered shall be paid within thirty (30) days of receipt of the Goods and upon submission of a claim supported by the documents specified in GCC 11.1. The advance payment shall be deducted from this payment.
GCC 17.1	The Supplier shall provide a Performance Security as follows: I. If bid price of the bidder selected for acceptance is up to 15 (fifteen) percent less than the approved cost estimate, the performance security amount shall be 5 (five) percent of the bid price. II. For the bid price of the bidder selected for acceptance is more than 15 (fifteen) percent below of the cost estimate, the performance security amount shall be determined as follows: Performance Security Amount = [(0.85 x Cost Estimate – Bid Price) x 0.5] + 5% of Bid Price. The Bid Price and Cost Estimate shall be inclusive of Value Added Tax. The amount of the Performance Security shall be in Nepalese Rupees, and shall be valid for the period of 365 Days The performance security shall be forfeited, in case the Supplier fails to complete the contractual obligation and rectify the defects within warranty period.
GCC 17.3	The types of acceptable Performance Securities are: A bank guarantee issued by Commercial Bank or Financial Institution eligible to issue Bank Guarantee as per prevailing Law located in Nepal or reputable bank located abroad, acceptable to the Purchaser, in the format included in Section VIII, Contract Forms, Performance Security issued by foreign Bank must be counter – guaranteed by Commercial Bank or Financial Institution eligible to issue Bank Guarantee as per prevailing Law in Nepal.
GCC 17.4	Discharge of the Performance Security shall take place: [<i>insert (a) in accordance with GCC Sub-Clause 17.4; or (b) indicate how the Performance Security shall be discharged</i>]
GCC 22.2	A complete packing list indicating the content of each package shall be enclosed in a water proof envelope and shall be secured to the outside of the packing case. In addition, each package shall be marked with indelible ink/paint in bold letters, as follows: a. Contract number : b. Name and address of the Purchaser: c. Country of origin, d. Gross weight e. Net weight f. Package number of total number of packages g. Brief description of content h. [Insert any other additional marking]



	Upright markings, where appropriate, shall be placed on all four vertical sides of the package. All materials used for packing shall be environmentally neutral. [Note: The above requirements should be reviewed on a case-by-case basis, with amendments being made as necessary]
GCC 22.2	A complete packing list indicating the content of each package shall be enclosed in a water proof envelope and shall be secured to the outside of the packing case. In addition, each package shall be marked with indelible ink/paint in bold letters, as follows: i. Contract number : j. Name and address of the Purchaser: k. Country of origin, l. Gross weight m. Net weight n. Package number of total number of packages o. Brief description of content p. [Insert any other additional marking] Upright markings, where appropriate, shall be placed on all four vertical sides of the package. All materials used for packing shall be environmentally neutral. [Note: The above requirements should be reviewed on a case-by-case basis, with amendments being made as necessary]
GCC 23.1	The insurance coverage shall be in an amount equal to 110 percent of the contract price of the Goods on “All Risks” basis, including War Risks, riots and/or Strikes.
GCC 24.1	Obligations for transportation of the Goods shall be in accordance with: <i>[indicate whether the responsibility for transportation shall be in accordance with Incoterms or other trade terms, such as “The supplier is required under the contract to transport the Goods to a specified place of final destination, defined as the project site, transport to such place of destination including insurance and storage, as shall be specified in the contract, shall be arranged by the supplier, and related costs shall be included in the contract price.”]</i>
GCC 25.2	Tests and Inspections specified in Section V, Schedule of Requirements, shall be carried out at the following times or milestones, and places: [Depending on the type of Goods to be procured, there may be a need to provide for special inspections and/or tests to be carried out. In particular, this will be the case when the Goods are designed specifically for the purpose of the Project in question or where due to the nature of the Goods, there is a need to ensure compliance with certain technical specifications and requirements at an early stage. If there is a need for such special inspections and/or tests, the SSC should mention specific testing methods and the timing or milestones and places where the tests and/or



	inspections are to be carried out. For example insert for each test: Goods: _____ Type of Test: _____ Time or Milestone: _____ Place: _____ Address: _____ Country: _____
GCC 26.1	The applicable rate of liquidated damages shall be: <u>0.05 percent of the Contract Price per day.</u>
GCC 26.1	The maximum amount of liquidated damages shall be: <i>ten (10) percent of the Contract Price.</i> The contract shall be terminated, if liquidated damages exceeds 10 percent of the Contract Price and blacklisting process shall be initiated for the Supplier's failure to complete the contractual obligations.
GCC 27.3	The period of validity of the Warranty shall be: <i>[insert the period of validity of the warranty]</i> For the purposes of the Warranty, the place of final destination shall be:
GCC 27.5	The Supplier shall correct any defects covered by the Warranty within: <u>15 number of days which should not be more than half of the Contract period</u> of being notified by the Purchaser of the occurrence of such defects

Section VIII. Contract Forms

Table of Forms

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Handwritten signature or initials.

15/MF/CHT-Kmun/SQ/Goods/2080-2081



Letter of Intent

[on letterhead paper of the Purchaser]

..... date.

Notes on Letter of Intent

The issuance of Letter of Intent is the information of the selection of the bid of the successful bidder by the Purchaser and for providing information to other unsuccessful bidders who participated in the bid as regards to the outcome of the procurement process. This standard form of Letter of Intent to Award should be filled in and sent to the successful Bidder only after evaluation and selection of substantially responsible lowest evaluated bid.

To: name and address of the Supplier

Subject: Issuance of letter of intent to award the contract

This is to notify you that, it is our intention to award the contract. for execution of the**name of the contract and identification number**, as given in **the Contract Data/SCC** to you as your bid price
...**amount in figures and words in Nepalese Rupees**as corrected and modified in accordance with the Instructions to Bidders is hereby selected as substantially responsive lowest evaluated bid.

Authorized Signature:

Name:

Title:

CC:

[Insert name and address of all other Bidders, who submitted the bid]



Letter of Acceptance

[on letterhead paper of the Purchaser]

..... date.

To: name and address of the Supplier

Subject: . Notification of Award

This is to notify that your Bid dated . . . date . . . for execution of the **name of the contract and identification number**, as given in the **Contract Data/SCC**for the Contract price of Nepalese Rupees [insert amount in figures and words in Nepalese Rupees], as corrected in accordance with the Instructions to Bidders is hereby accepted in accordance with the Instruction to Bidders.

You are hereby instructed to contract this office to sign the formal contract agreement within 15 days. As per the Conditions of Contract, you are also required to submit Performance Security, as specified in SCC, consisting of a Bank Guarantee in the format included in Section VIII (Contract Forms) of the Bidding Document.

The amount of performance security shall be NRs..... [Insert amount] and validity period of performance security shall be[insert validity period].

The Purchaser shall forfeit the bid security, in case you fail to furnish the Performance Security and to sign the contract within specified period.

Authorized Signature:

Name and Title of Signatory:



Agreement Form

THIS AGREEMENT made on the **[insert number]** day of **[insert month]**, **[insert year]**, between **[insert complete name of Purchaser]** of **[insert complete address of Purchaser]** (hereinafter “the Purchaser”), of the one part, and **[insert complete name of Supplier]** of **[insert complete address of Supplier]** (hereinafter “the Supplier”), of the other part:

WHEREAS the Purchaser invited Bids for certain Goods and Related Services, viz., **[insert brief description of the Goods and Related Services]** and has accepted a Bid by the Supplier for the supply of those Goods and Related Services in the sum of NRs**[insert amount of contract price in words and figures including taxes]** (hereinafter “the Contract Price”).

NOW THIS AGREEMENT WITNESSETH AS FOLLOWS:

1. In this Agreement words and expressions shall have the same meanings as are respectively assigned to them in the Conditions of Contract referred to.
2. The following documents shall be deemed to form and be read and construed as part of this Agreement, viz.:
 - (a) the Purchaser’s Notification to the Supplier of Award of Contract;
 - (b) the Bid Submission Form and the Price Schedules submitted by the Supplier;
 - (c) the Special Conditions of Contract;
 - (d) the General Conditions of Contract;
 - (e) the Schedule of Requirements; and
 - (f) **[indicate any other documents required as appropriate]**

This Contract shall prevail over all other Contract documents. In the event of any discrepancy or inconsistency within the Contract documents, then the documents shall prevail in the order listed above.

3. In consideration of the payments to be made by the Purchaser to the Supplier as indicated in this Agreement, the Supplier hereby covenants with the Purchaser to provide the Goods and Related Services and to remedy defects therein in conformity in all respects with the provisions of the Contract.
4. The Purchaser hereby covenants to pay the Supplier in consideration of the provision of the Goods and Related Services and the remedying of defects therein, the Contract Price or such other sum as may become payable under the provisions of the Contract at the times and in the manner prescribed by the Contract.

IN WITNESS whereof the parties hereto have caused this Agreement to be executed in accordance with the laws of “Nepal” on the day, month, and year indicated above.

Signed by **[insert authorized signature for the Purchaser]** (for the Purchaser)

Signed by **[insert authorized signature for the Supplier]** (for the Supplier)



Performance Security

[insert complete name and number of Contract]

To: *[insert complete name of Purchaser]*

WHEREAS *[insert complete name of Supplier]* (hereinafter “the Supplier”) has received the notification of award for the execution of *[insert identification number and name of contract]* (hereinafter “the Contract”).

AND WHEREAS it has been stipulated by you in the aforementioned Contract that the Supplier shall furnish you with a security *[insert type of security]* issued by a reputable guarantor for the sum specified therein as security for compliance with the Supplier’s performance obligations in accordance with the Contract.

AND WHEREAS the undersigned *[insert complete name of Guarantor]*, legally domiciled in *[insert complete address of Guarantor]*, (hereinafter the “Guarantor”), have agreed to give the Supplier a security:

THEREFORE WE hereby affirm that we are Guarantors and responsible to you, on behalf of the Supplier, up to a total of *[insert currency and amount of guarantee in words and figures]* and we undertake to pay you, upon your first written demand declaring the Supplier to be in default under the Contract, without cavil or argument, any sum or sums within the limits of *[insert currency and amount of guarantee in words and figures]* as aforesaid, without your needing to prove or to show grounds or reasons for your demand or the sum specified therein.

This security is valid until the *[insert day, month, year]*.

Name: *[insert complete name of person signing the Security]*

In the capacity of: *[insert legal capacity of person signing the Security]*

Signed: *[insert signature of person whose name and capacity are shown above]*

Duly authorized to sign the security for and on behalf of: *[insert seal and complete name of Guarantor]*

Date: *[insert date of signing]*

Advance Payment Security

[insert complete name and number of Contract]

To: *[insert complete name of Purchaser]*

In accordance with the payment provision included in the Contract, in relation to advance payments, *[insert complete name of Supplier]* (hereinafter called “the Supplier”) shall deposit with the Purchaser a security consisting of *[indicate type of security]*, to guarantee its proper and faithful performance of the obligations imposed by said Clause of the Contract, in the amount of *[insert currency and amount of guarantee in words and figures]*.

We, the undersigned *[insert complete name of Guarantor]*, legally domiciled in *[insert full address of Guarantor]* (hereinafter “the Guarantor”), as instructed by the Supplier, agree unconditionally and irrevocably to guarantee as primary obligator and not as surety merely, the payment to the Purchaser on its first demand without whatsoever right of objection on our part and without its first claim to the Supplier, in the amount not exceeding *[insert currency and amount of guarantee in words and figures]*.

This security shall remain valid and in full effect from the date of the advance payment being received by the Supplier under the Contract until *[(insert day, month, year) Contract completion date may be a basis for this date]*.

Name: *[insert complete name of person signing the Security]*

In the capacity of: *[insert legal capacity of person signing the Security]*

Signed: *[insert signature of person whose name and capacity are shown above]*

Duly authorized to sign the security for and on behalf of: *[insert seal and complete name of Guarantor]*

Date: *[insert date of signing]*